

ORIGINAL

BEFORE THE
FEDERAL MARITIME COMMISSION

CC:
OS
OGL
ALY(2)
CADRS

DOCKET NO. 20-03

EARLEAN EDWARDS DUKART
Complainant,

vs.

OCEAN STAR INTERNATIONAL INC., d/b/a/
INTERNATIONAL VAN LINES
Respondents.



VERIFIED COMPLAINT

Complainant, Earlean Edwards Dukart submits this Verified Complaint alleging violations of the Shipping Act of 1984, 46 U.S.C. § 40101 *et seq.*, by Ocean Star International INC. d/b/a/ International Van Lines (collectively, “Respondents”). This action arises out of Respondents’ intent to perpetrate tortious and other wrongful conduct against the Complainant. Respondents willingly and intentionally, altered the terms of the Service Agreement entered into. Respondents failed to operate or provide services in accordance with the terms of either Service Agreement. By way of refused release of cargo, Respondents extorted Complainant into paying invalid invoices with inaccurate fees and charges that were disputed by the Complainant. Respondent failed to establish or observe just and reasonable practices relating to the receiving, handling or delivery of property. Additionally the Respondents unlawfully submitted fraudulent documents. Among them, the aforementioned altered version of the Service Agreement, several variations of the “final” invoice, and unlawfully forged documents alleging Complainant’s receipt of cargo, in acceptable condition, whereby denying any accountability for loss and damages to said cargo. Respondents’ conduct is in violation of the Shipping Act of 1984 and has caused and continues to cause Complainant substantial injury including but not limited to unreasonable and unjust payments and obligations, lost profits, substantially damaged and lost inventory, lost business opportunities, consequential and incidental damages. In further support of this Complaint, Complainant states as follows:

I. Parties

A. COMPLAINANT

1. Earlean Edwards Dukart (“ Complainant” or “ED”) is a citizen of the United States, currently residing at 1 Pelican Pathway, Consejo Shores, Corozal Town, Belize, Central America.
Email address: EarleanDukart@comcast.net
2. ED sought transportation of household goods by water between the United States and Belize through Respondents’ services.
3. ED is a “shipper” in relation to the Respondents as such term is defined in 46 § 40102(22).

B. RESPONDENTS

1. Respondents Ocean Star International INC. (“OSI”) d/b/a International Van Lines (“IVL”) is an entity that is incorporated in Florida. Respondents principle business address is 3961 NW 126th Avenue, Coral Springs, Florida, 33605. Respondents have a secondary address listing of 3957 NW 126th Avenue, Coral Springs, Florida, 33605.
2. Respondents’ FMC organization/license no. 021051. IVL U.S. DOT# 2293832 MC# 796971. OSI U.S. DOT# 2247789 MC# 729978. Respondents are listed as “carrier” and “broker” as reported by FMCSA.
3. Respondents have the following contact information listed:
Scott@internationalvanlines.com, Phone (954) 510-4483, Fax (954) 337-0731, Phone (954)753-4533, DOTPROCESSAGENTS.COM LLC, E.FORWARD.COM.
4. Respondents are parties to a Service Agreement for the international shipment of goods, Service Contract No. IN4005736 (“Service Contract”).
5. At all times relevant to the allegations in this complaint, Respondents were acting as a “common carrier” as defined in 46 U.S.C. §40102.

II. JURISDICTION and LEGAL AUTHORITY

- A. The Federal Maritime Commission (“FMC”) has subject matter jurisdiction over this claims in this action as this matter relates to the contracts for carriage of goods by sea from ports of the United States, and thus comes under the Carriage of Goods by Sea Act (“COGSA”), 46 U.S.C. § 30701.
- B. Pursuant to 46 U.S.C. § 41301 *et seq.* for injuries caused to Complainant by Respondents, FMC has jurisdiction as Respondents’ actions constitute violations of the Shipping Act of 1984 (46 U.S.C. §§ 40101-41309) and specifically 46 U.S.C. Chapter 411. (“Shipping Act”)
- C. Service Contract contains terms that are “uncertain, vague, or ambiguous,” in violation of 46 C.F.R. 530.8(c)(1)(2).
- D. OSI, IVL and entities are obligated to comply with all applicable rules and regulations of the FMC, including the Shipping Act and COGSA
- E. ED is seeking reparations and all other appropriate relief for injuries caused as a result of Respondents violation of 46 U.S.C. § 41102 (a)(b)(c), 46 U.S.C. § 41103(a)(1), 46 U.S.C. § 41104 (1)(2)(3)(4)(8)(10), 46 U.S.C. § 41105 (1)(2)(4)

III. STATEMENT OF FACTS

- A. ED sought professional services, requesting a 40 foot shipping container for transportation of household goods for an international relocation between Denver, CO, USA, to Consejo Shores, Belize, Central America.

- B. IVL advertised their ability to provide such services, ED originally spoke extensively with IVL, during which a virtual “walk-through” was conducted with Respondents’ representative Nico Restrepo. Each room of the house was entered during the call, the contents of each room was discussed extensively, as related to shipment content. Nico Restrepo inquired of sizes, quantities and specifications of items that were to be transported. Details of large items were discussed.
1. ED advised Nico Restrepo that the service needs were to accommodate a 3100+ square foot home; 2 bedrooms, 2 office spaces, 3.5 bathrooms, 900 sq. ft. fully finished basement/game room area, backyard patio and garden furniture, and a well equipped garage area housing large tools and sporting equipment.
 2. ED advised Nico Restrepo that the game room housed a pool table to be disassembled, transported and reassembled upon delivery.
 3. ED advised Nico Restrepo that spouse is a full time Certified Professional Coder, there are several monitors, and computer equipment for transport. ED’s spouse is also a photographer who provides matting and framing services, resulting in an above average quantity of artwork, supplies, and materials.
 4. ED advised Nico Restrepo that as a Cosmetologist, two hydraulic chairs, two shampoo bowls, cabinetry, equipment, and supplies required for providing services were to be transported.
 5. ED advised Nico Restrepo that wrapping would be a priority as many pieces of furniture were large and quite fragile, many made of or containing glass along with the very heavy ceramic shampoo bowls.
 - a) Items discussed include, but are not limited to: living room furniture, a formal dining glass top table and chairs, glass top side tables, several large mirrors, bedding, dressers, a three section glass office desk, entertainment center cabinetry, both 55 and 73 inch wide screen televisions, bar tables and stools, washers/dryers, power tools, patio furnishings, cabinets, glass cabinet doors, artwork, oversized vases/sculptures/decor pieces.
 - b) Nico Restrepo requested, to which ED complied, to physically measure and convey the dimensions of some items during the discussion.
 6. ED advised Nico Restrepo that most items that could be packed (i.e., personal items, clothing, offices’ contents, decor, kitchen and bath items, smaller decor, etc.) were done, prior to, for exclusionary purposes. Other household items that could be, had been or were being packed. Box contents were itemized on labels, and listed on a comprehensive inventory list. Labeling was all done in accordance to a detailed, numerically ordered, room by room colored-coded key chart, re-listing contents and designating it’s destination room for delivery and unpacking. Boxes were stacked, set aside, ready for loading.
 7. ED advised Nico Restrepo that a closing for the sale of the residence was scheduled for 5.11.2018, the pending move needed to commence a few days before. The allotment of ample time was imperative to handle items that were not scheduled for the move and, to comply with leaving the house empty, broom clean as per the real estate contract in effect required.
 8. Nico Restrepo stated that requirements could be met, IVL could accommodate the undertaking of transportation services for the relocation.
 9. Nico Restrepo advised that all services could be provided inclusively.

- a) a crew of professional movers to wrap and load
 - (1) Nico Restrepo specifically stated to ED that artwork need not be removed from the walls, movers would handle it.
 - (2) Nico Restrepo advised that full packing services were available, capable of packing the dishes from the kitchen cabinets. ED reiterated that as part of the selection process of items to be transported, 85% to 90 % of the household items were packed, the rest in process. The full packing service option was not required. Services were only needed for larger, fragile items as stated above.
 - (3) Nico Restrepo advised that Packed By Owner (PBO) boxes were acceptable but frowned upon for Bill of Lading as related to customs.
 - (4) Nico Restrepo advised that as ED's inventory listing was thorough, it could be transcribed and incorporated into the Bill of Lading to be generated at loading.
 - b) service technicians for disassembly and re-assembly of the pool table
 - c) all transportation requirements
 - d) all customs requirements
 - e) residential delivery
 - f) professional mover requirements for unloading and setup
 - g) removal of all debris.
10. Nico Restrepo stated that he would consolidate information, utilizing it to provide an estimate of costs. Once research and confirmations were received, further contact would be made.
 11. On 4.27.2018 Nico Restrepo proposed the services and costs that IVL offered to provide. ED discussed the findings and figures. All appeared to be feasible. ED requested a written copy be sent for review and execution of, where upon booking process for said services could commence.
 12. On 4.30.2018 ED received actual documents regarding the International Moving Estimate ("Estimate"), IN 4005736¹ from Nico Restrepo representing IVL, offering services for the sum of \$17,424. This correspondence included Terms of Contract and Payment information for a \$3,000 deposit. ED reviewed the quote with Nico Restrepo, all terms were explained and confirmed with elaboration of specific details by Nico Restrepo. The Quote states the following terms:
 - a) Move date is scheduled for 5.9.2018.
 - b) Respondent would provide "Door to door" Full Container load service with a 40ft. container specified as requested.
 - c) The Estimate states White Glove Service \$0.00 charge, Wrapping, Loading and Securing Load \$0.00 charge, All Packing Material Included \$0.00 charge.
 - (1) Nico Restrepo confirmed these items were included in quote.

¹ A true and correct copy of the Estimate is attached hereto as Exhibit "1."

- d) Container would be delivered to residence,
 - e) Wrapping and loading by a professional moving team,
 - (1) Movers would be experienced in international moving procedure, wrapping, large and fragile items' packing, equipped and prepared for details relevant to meeting customs clearance requirements.
 - (2) ED inquired about the load time provision, Nico Restrepo assured that an adequate number of movers to maintain given time restraints would be deployed.
 - f) Intermodal trucking and or rail transport,
 - g) Transportation to the port of departure,
 - h) Tolls/milage,
 - i) File processing for U.S. Customs,
 - j) Container Service Charges ("CSC") and Terminal Handling Charges ("THC"), at both Origin and Destination ports,
 - k) Ocean Freight charges,
 - l) Destination household goods Customs clearance,
 - m) Door delivery/off loading/removal of debris
 - (1) Nico Restrepo elaborated the term "off loading" to be setup and placement in respected locations of wrapped items that were shipped.
 - n) Though not separated or specifically itemized in the initial quote, disassembly, packing, transport and re-assembly of a pool table was included as evidenced by email correspondence and the scheduling and commencement of such, by order of Nico Restrepo.
13. On 5.1.2018 documents and deposit were received, IVL entered the referenced Service Agreement with ED for the shipping of household goods.
 14. On 5.2.2018 IVL sends an email regarding the packing of pool table, scheduling a 5.7.2018 pack date.
 15. On 5.7.2018 two men arrive. Pool table is disassembled, packed, crated and prepared for shipping. Nico Restrepo called and confirmed services had been rendered adequately and requested a move of the scheduled packing date from 5.9.2018 to 5.8.2018.
 - a) Nico Restrepo was advised that we were operating in accordance to schedule, we would be prepared for 9:00 a.m. on 5.9.2018, but we could not accommodate a day earlier.
 16. On 5.8.2018 Nico Restrepo called and stated that there was an issue with acquiring a shipping container for 5.9.2018. He stated that a container would be available on 5.10.2018. Nico Restrepo is reminded that a Closing is scheduled for the house at 10:00 a.m. on 5.11.2018. Concern is expressed about the ability to load and finish cleanup to contract specifications if the loading date is changed to 5.10.2018. Nico Restrepo assures that there will be a more than adequate crew to empty the house and complete the loading in a matter of hours.

17. On 5.10.2018 at the scheduled time of 9:00 a.m., nothing has transpired. No container, no movers, no communication, no response to calls. At 10:00 a.m., 3 men in a Penske rental truck show up unprepared.
- a) Movers advise that a shipping container has not been acquired.
 - b) Movers advise that they have been contracted for wrapping a few pieces of furniture and to move a few boxes.
 - c) Movers advise they have been instructed to transport items to a storage warehouse
 - d) Movers refer to a copy of the moving estimate where the lines that state “ White Glove Service \$0.00”, “Wrapping, Loading Securing Load \$0.00”, and “All Packing Material Included \$0.00” had been omitted from their copy.
 - (1) ED presents the original contract information
 - (2) Foreman Jesse Larrea advises that the original contract had indeed been altered in a manner that was to ED’s detriment.
 - (a) They did not have adequate supplies and materials.
 - (b) There was no understanding of the return of materials that may be used.
 - (c) Their company was not prepared to send their supplies overseas
 - (3) To document that two versions of the service contract are in play, Jesse Larrea signs and dates the copy of the provided contract and confirms that ED’s preparations and expectations are in accordance to contract terms listed on the original but not his copy.
 - e) The movers contact their supervisor, then advise that they will not start. Movers state that this was not the job that were hired for. That they were not advised of a full house international move. Efforts are made to contact Nico Restrepo.
 - f) Two hours of phone exchanges ensued between Movers, Movers supervisor, ED and Nico Restrepo. This situation requires an immediate resolution, the repercussions from contractual obligations exceeding \$585k that are in effect are inconceivable to ED.
 - g) We are advised that the movers have come to a concordance. Desperation dictates; time, alternate choices or other options are not available.
 - (1) Movers declare that as items are to travel internationally they are refusing to use any of their packing/wrapping materials. We must make immediate arrangements for such. We made several trips for adequate supplies. Many items were wrapped in sheets, blankets and garage sale linens that were not to be transported.
 - (2) Boxes are closed and sealed with no regard to contents. ED stopped an attempt to haphazardly close a box with glass cabinet doors that was set aside for the “White Glove Service” wrapping.

- (3) The “Professional Loading Crew” were to create a detailed invoice list of items as per the requirements for Bills of Lading, directly reflecting Customs Entry.
 - (a) The three men in a rental truck crew do not comply- the word “Box” is written down 10 times on the inventory list.
 - (b) ED must plead for more detail to be added.
- (4) Items are not being packed efficiently nor effectively for container transport, loading is happening for warehouse storage, foreseeing two more moves prior to container loading.
 - (a) Pillows are being removed from dresser drawers for “weight and ease of movement” adding the need for more boxes and additional space,
 - (b) cabinets and shelves are wrapped and loaded empty.
 - (c) Valuable space is not being utilized, while they are advising that many items wont fit in the truck.
- (5) Failure to provide a shipping container dictates capacity limits.
 - (a) Everything is grouped together for a full move.
 - (b) ED is forced to make last minute on the spot decisions to what is and is not be be packed. Many items that are being selected are not of significant importance to be transported as are items being excluded.
 - (c) Requests for specific inclusions/exclusions are denied many times by movers during loading validated by “this fits well” and, “we’ll add that later.”
 - i) Vacuum sealed bags of clothing sat beside the truck waiting for the “opportune” time and space to be loaded. They never made it on the truck.
- (6) Items were inventoried then not loaded. At least two items on the inventory list were left behind. Many items have one piece or part in the shipment, other necessary parts were not loaded.
- h) As conflicts arise, Nico Restrepo is contacted several times to resolve chaotic issues at hand:
 - (1) how items are being handled,
 - (2) the lack of effective loading to maximize space usage,
 - (3) the lack of proper inventory itemization,
 - (4) the movers deciding that garden tools were more imperative than clothing,
 - (5) the lack of man power,
 - (6) the certainty that loading was not going to happen in a workable time frame.

- i) Nico Restrepo responds from a defensive and accusatory position that ED has accountability for not being able to accommodate the earlier load date request. The suggested expectation for ED is to respond with gratitude that the service contract was being honored in some form as opposed to being dismissed or simply terminated. "At least something is being provided... you need to have the house emptied, right"
 - (1) Nico Restrepo advises that the movers are going to take the shipment to "our warehouse".
 - (2) Nico Restrepo advises that a container will be available within the upcoming week.
 - (3) Nico Restrepo advises that the previously planned loading crew would accompany the container, loading will occur directly from IVL's warehouse to the container.
 - (4) Nico Restrepo advises that arrangements will be made to accommodate item selections. ED is assured that meeting the container, supervising the shipment selection, bringing necessary items to add to the shipment and removing items that were loaded but not going, would not be an issue.
 - j) ED contacts friends and family for assistance. Many stop by and help with the wrapping and loading. This is culminating into more than three days of continuous preparations and the physical execution of this move on ED's behalf.
 - k) Scheduled trash removal, cleanup time, planned donation pickups all must be cancelled and rescheduled as we are occupied physically handling a move that had been arranged to be done for \$17,424.00 by a professional international moving company.
18. On 5.10.2018 at the scheduled time of 6:00 p.m., buyers arrive for the final inspection. The house is partially loaded and in a complete state of chaos. The delayed start, manpower and supply shortage, leave us far from finished. Breach of the moving contract by IVL directly results in the breach of ED's sales contracts' provision requiring the house be empty, inspection ready.
- a) Buyers demand a secondary contract that will permit continuation of the sale, allowing for the contingency of us to rent back a portion of the house to facilitate clearing of the remaining items.
 - (1) A \$1000.00 dollar deposit along with a \$100.00 a day rent stipulating complete clearing of the house, clearing the property within three days or less, with ten days use of the garage.
 - (2) Buyers have scheduled contract work to begin after closing, a third contract breach result is contingent due to IVL's failure to perform. ED assures the house will be empty.
19. On 5.11.2018 at approximately 2:30 a.m. the truck has been loaded to capacity, ED is left to handle ALL remaining items. Only half of the job is done. Responsibility for all other wrapping, moving and the newly acquired storage needs are unapologetically dumped on ED.
- a) As per ED's secondary contract with the buyers, work continues all night to empty the house into the rented garage. There is no time for order or organization, get it moved from inside the house.

- b) Mental and physical exhaustion are prominent, as we are well into day three without rest. ED's spouse becomes deliriously delusional, wrapping and re-wrapping, repeatedly moving the same items. A complete nervous breakdown ensues. Local police are involved.
 - c) Buyers request an additional inspection. Closing time is pushed back to accommodate. This extra inspection occupies the opportunity to put order to and gather personal items, to bathe and prep for closing.
- 20. On 5.12.2018 secondary housing arrangements are mandated to accommodate coordinating additional hired help for the additional moving needs. The primary housing plan is not close to the house. The secondary cannot accommodate our dog. Additional housing and travel expenses are endured. ED spends 5.13.2018 researching possible options:
 - a) portable storage is the only means to meet the shipping container as planned for selective loading.
 - b) large portable storage units are limited and require a waiting period even with an expedited service fee and option.
 - c) small local companies are supposed to have small self serve units for immediate rental.
- 21. On 5.14.2018 ED makes arrangements and reservations for three transportable storage pods and additional movers. The reservation was cancelled twice, reserved once in the wrong state, and finally available but without an available qualified operator for the loading machinery. Moving crews with short notice availability have been difficult to acquire. Rather than cancel the work crew the largest rental truck we can obtain is rented. The truck is kept and used as temporary storage for what we can fit until portable storage becomes available. ED spends 5.15.2018 further researching options.
- 22. On 5.16.2018 a special order is placed with Packrat. Additional movers are again contracted to transfer all items to the Packrat pods, in preparation for having them delivered to IVL's "warehouse" to meet the container for loading as discussed. Many hours were spent making and executing these arrangements. Many additional expenses are incurred for expedited service and additional labor.
- 23. On 5.18.2018 after multiple attempts for a status update since 5.12.2018, Nico Restrepo forwards an email to Karen Nueber (Logistics Manager, IVL), wherein he requests an update noting that ED needed information for making the required arrangements for meeting the shipment at the port of entry as required. Karen Nueber responds "will have an update by Monday 5.21.2018"
- 24. On 5.21.2018 all personal property has been removed from the immediate premises. Scheduling conflicts prevent the removal of the pod itself before the owner imposes the loss of the \$1000.00 deposit.
 - a) Nico Restrepo nor Karen Nueber have not attempted communication nor responded to contact attempts from ED.
 - b) No information of the whereabouts of my possessions are available to me

- c) ED receives no answer when contacting the number from the contracted mover's business card. ED researches the business name from the inventory list. Locates additional numbers for Cobra Van Lines. No one answers.
 - d) ED is forced to purchase storage with Packrat.
- 25. On 5.22.2018 ED unsuccessfully attempts to contact someone who can provide information.
 - a) ED and spouse have mentally stressed, and physically exerted themselves,
 - b) are displaced having to relocate, reschedule and continuously rearrange our existence
 - c) have missed time from work, suffered loss of income and endured reprimands and repercussions of such.
 - d) have lost time and financial stability for progression of all other facets of this move
- 26. On 5.23.2018 ED loses consciousness, has a seizure, and is taken by ambulance to the emergency room
 - a) Syncope is diagnosed
 - (1) Blood pressure is 70/40
 - (2) dehydration, malnourishment, fatigue, and exhaustion are the cause.
 - b) ED's spouse has second full emotional breakdown
- 27. On 5.24.2018 - Karin Nueber sends email apology for the late response, blames short staffing
 - a) Email states:
 - (1) "We currently have you[r] items at our storage location due to carrier issues. Due to the routing of your shipment we are limited to the carrier available in Denver . The carrier's are having issues with low or no equipment available for export containers. This is due to the extremely low import shipments bring in the equipment. We anticipate equipment becoming available in the next week or so and can then have your items loaded for export sailing. I can send you another follow up next week when I check again with the carriers."
 - b) Karen Nueber and ED speak on the phone, ED is advised that she has no other information or awareness of the situation at hand. Karen Nueber states she will initiate a conference call along with ED and Nico Restrepo
 - (1) this call does not take place
- 28. From 5.28. - 5.31.2018, again multiple attempts to contact anyone to update the status are all unsuccessful.
- 29. On 5.31.2018 an end of day email is received with booking confirmation for a 6.5.2018 load date. ED has still been unsuccessful in contacting anyone directly.

30. On 6.1.2018 no communication has occurred to update status or provide necessary information. Emails, one for receipt of deposit is received from moving company and one requesting balance payment of \$576.96 in excess of original contract terms. The first invoice states all forms of payment are accepted, Credit Cards, wire, ACH and direct cash deposit. ² The balance request increase is evidenced by email cover from Karen Neuber.³
31. ED seeks resolutions, current planning and to have fee discrepancies validated.
- a) No messages have been returned
 - b) No address, numbers or contact person information is being provided to schedule with Packrat to meet the container for loading
 - c) Customer service was contacted all day to speak to ANYONE else who could help. ED is passed from department to department all day. No information is obtained.
32. On 6.4.2018 ED sent an email responding to the booking confirmation with a thorough explanation of the conflicts currently happening.
- a) The delivery of the rest of my belongings cannot be scheduled for the following day.
 - b) All of our communications prior to, as well as my email on the fourth it was clearly stated that as a result from the debacle that happened on the 10th we had storage pods and that exchanges were necessary when it came time to actually loading the container.
 - c) Delivery cannot be scheduled with out an address.
 - d) Karin Nueber responds that she can see that I am not ready. Hold status until resolved. Container loading can be scheduled for the following week.
- (1) ED HAS BEEN READY SINCE 5.10.2018 !!!!
- e) ED responds noting again the need for an address and other specifics for setting up delivery of the pods.
33. On 6.5.2018 ED is advised that Karin Nueber has requested next vessel available. She advises that confirmation should be received by the end of the day, no later than noon on 6.6.2018.
- a) Karen Nueber states, "I will keep you advised with advance notice so you can schedule your arrival to the warehouse."
34. On 6.7.2018 booking request approval for 6.13.2018 is sent from Karen Nueber.
35. On 6.8.2018 ED again, requests the "warehouse" address. Coordination and confirmation of the storage pods' delivery are specifically stated as the reason for the address request. Address is received, ED makes arrangements with Packrat.
36. On 6.11.2018 ED sends an email confirming the storage pods' delivery. ED requests extended time for pickup of the storage pods as the circumstances of the emergency delivery require. Early pick up cannot be scheduled as per Packrat.

² A true and correct copy of the Invoice is attached hereto as Exhibit "2."

³ A true and correct copy of the Email is attached hereto as Exhibit "3."

37. On 6.12.2018 Karen Nueber requests and receives confirmation of the exact time to arrange receipt of said storage pods.
- a) ED meets the storage pods' delivery person at IVL's given warehouse address.
 - (1) IVL has misrepresented it's "warehouse"
 - (2) Facility, in actuality, is a privately owned Mini U-Storage, that is 18 miles away.
 - b) No one at the storage facility is aware of the arrangements that ED has been advised of by IVL.
 - (1) No one representing IVL makes an appearance. Phone calls are not answered. Messages are not returned.
 - (2) ED provides the secondary company's information. Determines the connecting company, finds information, Cobra Van Lines rents units occasionally.
 - c) IVL is not an affiliate. Many phone calls have to be made.
 - (1) Cobra Van Lines is finally contacted.
 - (2) States they do have belongings in a shared unit.
 - (3) States that there were no arrangements made with them.
 - (4) No one was scheduled to meet ED.
 - (5) Shared space required a representative be present.
 - (6) Access is denied.
 - d) ED explained advised arrangements from IVL regarding the move. Communication ensues between IVL, Cobra Van Lines, and Mini U-Storage.
 - e) ED is directed as to where to have the pods placed for the next day's loading, by the Mini U-Storage office personnel.
 - f) Packrat storage pods are placed next to unit containing ED's items to be shipped.
 - g) ED receives another email invoice for \$18,000.96.
 - (1) the discrepancy of \$576.96 over cost from original Service Contract has not yet been validated
38. Late afternoon on 6.12.2018, ED receives an email from Karin Nueber, the Florida office is closed at this time. The email states that the container is not seaworthy, IVL is rescheduling the loading for a later date.
39. The evening of 6.12.2018 ED receives a call from Packrat. Packrat has received a complaint from Mini U-Storage's head office,
- a) the pods are illegally placed and must be removed immediately.
 - b) Threats are issued for not having any liability in the event that someone else chooses to move them

- c) if not removed soon enough towing and police will be involved
 - d) Packrat advises that ED will be accountable for any damages
 - e) many calls are made explaining the situation, begging and pleading for assistance
40. Emergency planning coordination and services are again needed.
- a) ED makes arrangements for a late pick up on the 13th with Packrat.
 - b) ED acquires additional storage at this Mini U-Storage location to have everything available for container loading.
 - c) ED hires additional movers to unload the storage pods to acquired storage units in preparation for container loading for the morning of 6.13.2018, prior to the late evening emergency pickup of the pods that is already scheduled.
41. On 6.13.2018 ED and two others arrive at 9am to unload, three additional movers are scheduled for 10am to unload into ED's rented unit. As per Mini U-Storage:
- a) ED is denied access to the premises,
 - b) the Packrat pods were illegal, violations of established guidelines,
 - c) advised that the premises physically could not accommodate a shipping container, container loading was never feasible, from this location
 - d) nothing that had occurred was authorized by Mini U-Storage,
 - e) Mini U-Storage would not accept any involvement nor liability, they did not want to participate in any manner.
 - f) advised that because of the current issues corporate will no longer allow ED to rent a separate unit.
 - g) ED and movers can by no means enter the premises much less even open the storage pods...remove them immediately.
 - h) another moving crew, at the last minute, paid to wait for nothing
42. By mid afternoon on 6.13.2018 ED has exhausted all efforts for resolution of this move. Enough is enough.
- a) efforts to procure other companies to complete the move are made
 - b) more threatening calls for removal of the pods come
 - c) pods are picked up taken back across town to Packrats warehouse,
 - d) storage arrangements for the pods must again be obtained
43. On 6.14.2018 ED has arranged new movers, that have equipment available, with a scheduled pick up date of 6.20.2018.⁴

⁴ A true and correct copy of the Invoice is attached hereto as Exhibit "4."

44. As of 6.12.2018 IVL has failed to communicate in any manner, as a result, on 6.15.2018 ED ventures through avenues of attempts to reach anyone at this point for assistance. Alternate extensions are tried, voice mails are left, requests to speak with management are made when an extension was answered, many transfers occurred, most leading to voice mail.
45. On 6.15.2018 ED is ultimately connected to someone identified as the department supervisor, Scott Kalinowski, titled as Relocation Coordinator. ED is advised that he has already been made aware of the current situation.
- a) ED is advised that IVL has no faults
 - b) IVL was contracted to move some boxes and a few pieces of furniture
 - c) Scott Kalinowski advised that ED held fault for complications of this move
 - (1) ED is accused of creating delays from inquiries directed towards the movers and Nico Restrepo during loading such as:
 - (a) the questioning of the logic behind not utilizing and maximizing space as effectively as possible given the 26' truck in place of the contracted 40' shipping container.
 - (b) removing pillows from dresser drawers to be put in separate boxes
 - (c) sofa cushions are removed from large cabinets prior to wrapping
 - (d) why many large empty usable spaces are observed while continually being reminded of space restrictions of the 26' truck.
 - (2) Scott Kalinowski asserts that packing services were not part of the contract
 - (a) the glass cabinet doors and artwork that are grouped in boxes and set aside in preparation for Professional Wrapping and Loading as per the Service Contract are depicted as ED has not packed
 - (3) Scott Kalinowski advises that he has been informed that the Packrat storage pods had not been mentioned at any time prior to. There were only to be a few boxes brought over to add to the container loading.
 - (a) A request to review emails to Nico Restrepo and Karen Nueber that clearly evidences otherwise, is refused
 - (b) Scott Kalinowski advises he does not need to review any supporting documentation.
 - (4) Scott Kalinowski advises that ED holds fault for attempting to exceed contract capacity limits
 - (a) ED is advised that everything that would fit in a 40' container, professionally loaded for an international move, would somehow defy laws of physics, and fit in a 26' truck loaded for moving contents to storage.
 - i) the movers confirmed a goal to maintain the least weight possible per item for unloading and reloading

- ii) the movers additionally confirmed that container loading looks different as items are not to be moved again before unloading
- (5) Scott Kalinowski advises that the inability to provide the contracted shipping container, the three men in a truck rather than a professional loading crew, the lack of any materials for packing, and all last minute modifications that resulted, had absolutely no bearing. IVL has no faults, standard procedure.
- d) ED requests cancellation of the contract and the release of the held shipment. Scott Kalinowski immediately replies \$9000 to cancel the contract. An exchange occurs.
 - (1) ED requests an explanation as to how this total was conceived
 - (2) ED is advised that \$9000 is the cost of the services that have already been rendered.
 - (3) ED is advised that the vested interest of the loading, movers, disassembly and storage arrangements would be accessed to that value.
 - (4) ED accepts that this is an unethical attempt to force continuation or pay inflated unreasonable fees. Spent, not wanting to engage further in the extortion charade at hand, ED concedes to continuation.
 - (5) ED requests the original contract amount, as the altered invoice totaling \$18,000.96 has not been addressed at this point.
- e) ED is emailed a link to the current invoice with the following notation: "Per your conversation with Scott, see attached updated invoice. We have deducted the credit card fee since that form of payment is no longer available. Our ACH and wire details are listed on the invoice."
 - (1) ED is advised that the altered invoice included this fictitious fee for charge card use.⁵ The invoice with that total was sent on 6.1.2018. Scott Kalinowski had not been spoken to yet, credit card fees were not relevant to this increase initially.
 - (2) This provision is not defined anywhere and has not been mentioned prior to
 - (3) The first option listed under forms of payment on the new invoice is credit cards, with no mention of any associated fees
 - (4) ED's credit card was accepted for the deposit with no fees accessed
- f) Scott Kalinowski is asked for an explanation.
 - (1) ED is advised that the credit card option was removed specifically to prevent the ability to cancel or dispute the charges.
 - (2) ED is advised that \$14,424 must be transferred immediately
 - (3) ED is advised that additional storage fees are pending
 - (4) ED is advised that if a container will not be spotted, any associated charges will be invoiced.

⁵ A true and correct copy of the Invoice is attached hereto as Exhibit "5."

- (5) Scott Kalinowski is advised that this stipulation is not feasible
 - (a) ED does not have access to the full amount in cash
 - (b) the original plan was to utilize a credit card prior to the last minute deletion of this option by IVL
 - (c) the funds that are available to ED are to pay the import/customs fees due at port, as well as for start up and security, as new arrivals in a foreign country, using them will have an adverse effect on ED's successful completion of this move.
- (6) Scott Kalinowski responds that ED can't afford to move then.
- g) ED contacts IVL and attempts to escalate the matter to a higher level, Scott Kalinowski responds advising the he is the highest authority.
- h) ED request cancellation and the return of belongings.
- 46. ED revisits the cancellation quote of \$9000. Given that the entire move to Central America was quoted at \$17424, the random selection of a total more than half of that cost, to move only half of the shipment approximately 18 miles, could not be accepted. ED requests IVL substantiate a real and true assessment of the services rendered to this point.
- 47. On 6.18.2018 ED receives the first of three invoices. Scott Kalinowski is contacted several times via emails and phone calls for clarifications and to make corrections.
 - a) the first invoice⁶ is for \$6241 it has two items listed with the description lines reading
 - (1) Rendered Services: pickup, packing, custom crating (pool table) and 1 month storage \$6091, and the Cancellation Fee \$150
 - (2) ED advises that packing was not performed, storage was not a requested service. Storage became required as IVL failed to acquire the contracted shipping container for over a month at this point
 - (3) Scott Kalinowski states he will make adjustments to reflect only services received
 - (4) ED requests an itemized breakdown of charges be included
- 48. On 6.18.2018 ED receives an email⁷ stating new movers must be rescheduled as we cannot confirm all is in place. Nothing is settled for the release of the shipment to allow loading as scheduled. New date is set for 6.25.2018.
- 49. On 6.19.2018 another local moving crew had already been hired to relocate all omitted items. All items are present, prepared for proper container loading, had the original schedule date for the new movers on the 20th not been affected by IVL, loading and shipping could have potentially occurred.
 - a) intentional misconduct occurs for days, many exchanges ensue.
 - b) IVL is given the scheduled pick up date for 6.25.2018

⁶ A true and correct copy of the Invoice is attached hereto as Exhibit "6."

⁷ A true and correct copy of the Email is attached hereto as Exhibit "7."

- c) acceptance is confirmed for the new movers to load from the warehouse
 - d) based on observation of IVL's service practices, and current dispute, new movers suggest that ED reschedule for 7.3.2018
 - e) IVL is not immediately informed of this change.
50. On 6.19.2018 the second "itemized" invoice⁸ received is also for \$6241 with four items listed and described as follows:
- a) "Please see the invoice attached which includes a breakdown of the charges. As per your confirmation, you will be making payment as soon as you receive it. Please reply with confirmation once you have made payment so I can have our accounting department confirm receipt of funds."
 - (1) Crating Fee: custom crating of pool table \$700
 - (2) Movers: wrapping, loading, unloading and reloading \$4500
 - (3) Storage \$891
 - (4) Cancellation Fee \$150
 - b) ED replies questioning receiving the same invoice total with different wording. The total does not reflect error adjustments. Wording is the only change.
 - (1) "Scott my first invoice has the exact amount of charges. When we spoke you were to reduce this amount for the packing and storage charges that were not received or requested. You sent me the same invoice and changed the wording. I have no detailed invoice. What does unloading and reloading refer to? I now have two cancel invoices showing the same charges for a lot less work than what is stated. They go with all the other documentation I have that have two different copies in play for. Is this going to be corrected? Are you sticking with this path? \$17,424 for everything from Denver to Belize, Then \$9,000 for moving it to a mini u-storage unit less than 25 miles away, then \$6,241 to release me from a job your company blotched and failed to complete. I have a quote for moving my belongings into a storage unit for \$1,500 from a local mover. What happens at this point? How are my belongings going to be returned to me? Does your unload and reload mean someone will be unpacking my stored belongings? Are arrangements being made for the movers to empty the storage unit my things are in?"
51. On 6.20.2019 Scott Kalinowski replies:

⁸ A true and correct copy of the Invoice is attached hereto as Exhibit "8."

- a) "We have provided you with a breakdown of the total charges. You have been charged for the crating of the pool table, wrapping of the items (not full packing), loading the items into the truck, unloading the items into the storage unit, reloading the items from storage into your movers truck or container (once we have received payment), one month of storage, and the cancellation fee. The error in regards to the packing was made by our accounting team, in speaking with Nico and looking at your quotation, this was never to be a full pack job. Therefore, our accounting team revised the invoice to reflect only the services we have rendered. Please let us know when you will be transacting the payment so we can let our crew know when they will need unload the storage unit."
52. ED questions receiving the same total, and the reloading, as IVL is not supplying a container
- a) "Wrapping loading and securing load are listed at \$0.00 on my contact. I didn't order, storage. I have scheduled pickup, I don't need reloading. I have local A to B moving in Denver. I need to see an invoice that reflects that and to have everything else defined in writing."
- b) ED is advised that the reloading is to load new movers container
- c) ED is advised that she will not be permitted to remove items from storage.
- d) ED advises that new movers will not permit anyone else to place any item in their container.
- e) ED advises that the new movers can remove items, loading the container they provide.
- f) ED notes that items are removed without any associated costs being removed. If the \$6241 was derived from the costs listed as stated on the first invoice, current listed invoice⁹ costs do not reflect any changes.
53. Scott Kalinowski demands contact information for new movers. He must ensure feasibility of their loading is his reasoning.
- a) ED provides contact information
- b) Scott Kalinowski contacts new movers
- c) he is fully advised of all of the plans and a scheduled loading date of 6.25.2018 is conveyed.
- d) Scott Kalinowski asserts he must coordinate the transition to the new movers with his warehouse team
54. On 6.20.2018 Scott Kalinowski advises via email that: " We will have our accounting dept adjust the invoice removing the \$500.00 for reloading. That is the last time we will be revising the invoice as we have all spent way too much time on this. As soon as you receive it, payment must be made. If not, another month of storage will be added. The reason storage was applied is because you needed to be out of your home."

⁹ A true and correct copy of the Invoice is attached hereto as Exhibit "9."

- a) ED responds inquiring of the accounting method that was applied given the itemization of \$4000 for wrapping, loading and unloading relative to only a \$500 reduction for reloading along with the flat out refusal to provide the contracted wrapping services.
 - b) ED ends the email exchange, a phone exchange occurs. ED disputes the charges that are being made up as we go along. ED is impudently advised of the ransom ultimatum, pay the invoice or lose your belongings.
 - c) ED abruptly terminates the exchange. ED refuses to communicate outside of written word at this point. Email exchanges begin again
 - d) ED is advised that "As I was trying to explain to you before you hung up on me, our accounting team has sent over the final invoice. Once payment has been received in our account we will release the shipment to you."
55. On 6.20.2018 ED submits a document detailing the fiasco in depth to all parties in copy
- a) A single reply comes from Scott Kalinowski and simply reads: "We have been trying to call you and it goes straight to voicemail. Please confirm you are paying the invoice. Once payment is received we can orchestrate a time & date to meet at the storage unit."
 - b) IVL refuses to respond to nor acknowledge existence of the documentation sent
 - c) attempts to communicate, deal or negotiate are refused
56. On 6.20.2018 the final correspondence from IVL is:
- a) "Checking to see if you have made payment?"
57. ED submits payment of \$2746.00 on 6.21.2018 to end this.
58. On 6.21.2018, IVL frivolously requests ED confirm payment. IVL emails, "...we just wanted to insure that this is from you because it has the correct amount. Please confirm if this is correct so I can apply properly. Also please note that this take 3-5 business days to clear the account."
- a) This wait period has not been mentioned or discussed prior to
 - b) The ACH for the deposit did not require a 3-5 day waiting period
 - c) IVL has conferred with the new movers, this new provision only serves to complicate and further delay the release of the shipment.
 - d) IVL is still operating with 6.25.2018 as the scheduled, planned loading date
 - e) IVL proposes the unrealistic expectation that a last minute scheduling will be feasibly done
 - (1) IVL has not been able to acquire/schedule a shipping container for two months
 - (2) 3-5 business days pass the 25th deadline and gives no notice time for a loading crew and container scheduling's coordination
 - f) ED request cancellation of the ACH payment. In lieu, permit use of credit card to have immediate access to funds thus, permitting the immediate release.

(1) Request is denied

59. ED requests information as to how and when belongings are to be released. ED is advised that when payment clears IVL will have their foreman contact new movers directly to coordinate the release from the storage facility. Contact information is again provided.
60. On 6.22.2018 Scott Kalinowski emails:
- a) "We expect the funds to appear in our account by early next week. At that time we will have our foreman get in touch with Dawne Harris (your designated mover) to coordinate a date & time to meet at the storage facility and remove your items."
 - b) "I called and spoke with Dawne Harris, she is aware of the situation and will wait to hear from us for a date & time to meet at the storage unit."
61. On 6.25.2018 the date that was originally scheduled for container loading
- a) ED emails: "You never mentioned holding the release of my stuff. You were informed of my pick up date for today when we spoke with the moving company. This is intentional. When and how are my things to be released?"
 - b) Scott Kalinowski responds "...once the funds have been received. As I mentioned in my previous email, we are in touch with Dawne Harris and will have our foreman coordinate the meeting date & time at the storage facility, once the funds are in our account."
 - c) Passing the scheduled load date by IVL is not mentioned.
62. On 6.27.2018 ED is advised by Scott Kalinowski that "I called ACH Dept to make sure the account number you entered is correct, because even though ACH payments always clear from 3 to 5 business days, sometimes it clears by 4th day. When I called, they would not give me any info, but said to wait till tomorrow which will be the 5th day. I'll make sure to keep you and logistics dept posted."
63. On 6.28.2018 ED is advised "We have received the funds into our account today. I just left a voicemail for Dawne Harris to see if her crew can be at the storage facility this Saturday morning at 9:00am to remove your items. I am awaiting her call back."
64. ED advises this is not acceptable. Dawne Harris can not speak for ED. Mid day notice on 6.28.2018 to be ready the morning of 6.30.2018 was absurdly unreasonable. IVL is dictating a time rather than coordinating between all three parties involved. Communication is required, dictation does not suffice. If movers and containers were readily available this situation would not exist.
- a) The new movers are not available for 6.30.2018, we have discussed their availability.
 - (1) The current scheduled date is 7.3.2018, giving plenty of time to orchestrate, as tentative bookings are already in place.
 - b) to make other arrangements for additional movers and storage for three days is unreasonable.
 - c) container scheduling cannot happen last minute

- d) IVL is aware of the loading debacle resulting in the need to exchange items of the shipment.
 - e) ED must be available and present for acceptance of shipment,
 - f) the inventory sign-off cannot be done by someone who doesn't know what was there nor it's condition.
 - g) ED advises that the new movers cannot answer for ED's availability,
 - h) nor can either of us meet the demand to be ready in two days.
65. Unreasonably the response is to restate his demand without any willingness to coordinate any other date. Scott Kalinowski emails:
- a) "I thought you wanted us to get in contact with her as she is now your designated mover that will be handling your shipment and the unloading of the storage unit? If that is not the case, who will you have available this Saturday morning to remove the contents from the storage unit? Our foreman can be there at 9:00am to open the unit. Whoever is removing the items will need sign off on our inventory list as they are now taking possession of the items."
 - b) ED advises again that: "Saturday does not work for any one. It has been asked multiple times to give me a how and when so that planning could happen in accordance. The only relevance of with Dawne was confirming availability and organization as IVL contractors could not load their container."
66. ED is required to confirm or cancel new booking by end of business day on 6.28.2018. Penalties will be extensive if all is set in motion with the container delivery and crew and nothing is available to be loaded.
- a) Scott Kalinowski's unjust and unreasonable refusal to deal or negotiate in the matter of release of said shipment does not permit collaboration for new movers.
 - b) ED must cancel new move date of 7.3.2018.
 - c) ED is advised that there will be 8-12 week availability turnaround for the next possible shipping date.
67. IVL's changes have eliminated the ability to meet all possible shipping deadlines available.
68. On 6.29.2018 IVL has not yet confirmed and scheduled release. ED must make alternate arrangements again. IVL finally concedes release and requests ED specify a date and time that will work and they will check with their foreman for his availability.
69. On 6.29.2018 ED request immediate release of the shipment. ED and Scott Kalinowski attempt to exchange phone calls. Poor reception interferes. ED emails: "Today."
- a) ED has been displaced for weeks. We are several towns away with limited cellular and internet access.
 - b) ED, spouse and dog are imposing on friends and family.
 - c) ED's window of opportunity is closed for shipping prior to having to leave,

- d) ED has passed many deadlines for obligations in Belize
 - e) Travel arrangements are still up in the air, last minute more expensive arrangements must be made
70. On 6.29.2018 at 7:52 a.m. Scott Kalinowski replies:
- a) "I will check with our foreman, I am not sure if he is available today. Please confirm if [this] is your best contact number as I will have him call you?"
71. ED confirms, then leaves for the hour plus drive into town for adequate reception. ED waits, less than 2 miles from the storage facility.
- a) ED spends hours waiting
 - b) during which, help has been recruited for late afternoon, and on hold for the exchange.
 - c) No calls are received.
72. Late afternoon on 6.29.2018 ED returns to find an email that was sent at 8:13 a.m.
- a) "Our foreman Jesse will be there in one hour (9:15am local time). Please be there with sufficient labor to remove your items from the storage unit. You will need to sign off on the inventory list before removing the items as they are being released from our care."
73. ED attempts to contact IVL with out success. Another day has been wasted in wait for IVL.
74. On 6.29.2018 ED receives the following:
- a) "Our foreman Jesse was at the storage unit at 9:15am this morning and waited 3 hours, he also tried calling you multiple times. Since you did not show up or answer his calls, we will now need to sort this out next week. I also tried calling your cell multiple times to which you did not answer. Please keep in mind another month of storage will be billed to you if you do not get in touch with us soon to remove your items."
- (1) ED was in town at a Starbuck's near the storage facility with full reception. There were no calls that were missed.
 - (2) An email is sent rather than the stated phone call request that ED willingly drove into town to accommodate.
 - (3) The new contingency of signing for the shipment before it is removed and checked has also been added.
 - (4) IVL is again changing the terms as we go.
 - (5) Based on the loading fiasco ED refuses to sign for belongings sight unseen.
75. On 6.29.2018 ED responds:

- a) “This is not coordination. This is dictation. I was in town with full signal most of the day. I did not receive any phone calls nor messages. I did not get your email until this evening, changing what you had just said, expecting me to be there in an hour. I am more than an hour away. I had coordinated plans to have my belongings picked up when you decided to once again change the terms and not allow me to use a credit card to pay the ransom. You would not release my belongings in time for my move even though you confirmed payment receipt. My move and movers had to be rescheduled. Dawne has no ability to just show up at your command. I have been explicitly forbidden by the property owners to remove anything from that storage unit as it also contains someone else’s property as well as mine. I will sign off on a checked and verified inventory list.”

76. On 7.2.2018 ED receives Scott Kalinowski’s email:

- a) “This is getting pretty ridiculous at this point. On Friday when I asked what date worked for you, you responded with “TODAY”. Miraculously I was able to make that happen by getting our foreman there and you did not show up. Please note we will not coordinate another thing on this shipment until you call me to discuss verbally. At that time I will have a colleague in my office to verify what is being discussed and I will also be calling my foreman so we can schedule a pick up date & time that works for everyone.”

77. On 7.2.2018 ED responds refusing to speak over the phone. IVL has not displayed honesty, integrity, validity or ethical practices up to this point. Service is limited, more so ED would like to continue to have all correspondence in writing at this point.

- a) ED emails: “Unfortunately, I am seriously displaced in the aftermath of your company’s failure to preform. I don’t have a phone signal and can run faster than the current internet speed accessible to me. I can’t operate in the bounds of your demands. As it is a holiday this week I feel Friday morning, 10:00 am will be a good day and time to schedule. Had there been coordination last week, I could have been there. You said Jesse would call me to set a time. I left to get a phone signal. You sent an email saying have labor and be there in an hour and added an additional change. If I am expecting a call I go to a signal, If I am waiting for e-mail I stay close to the computer. I can work with whichever you choose but you can’t say one then do the other. I have asked that the issue of my not being permitted into the storage unit by the owners of the facility be addressed. You added the last minute “be there with sufficient labor.” I have clearly been told...“Under no circumstances are you allowed to enter and remove any item from that unit.” I was banned from renting a unit there after the “meeting the container for loading” fiasco ensued. Additionally you have not commented on your last change, of I have to sign off on inventory site unseen. I have no problem signing off once I see that every piece that left my house has been returned to me.”

- b) IVL responds: “Jesse will be at the storage facility Friday morning at 10:00am. Please confirm you will be there by replying and also confirm you will have phone service on Thursday as Jesse will call you the day before.”

- c) ED emails again and requests that the storage facility accessibility and the demand that paperwork be signed in advance be addressed. These contingencies reflect confirmation capabilities.

- (1) The facility is gated, access has been denied before,

(2) ED refuses to sign paper work first, will access be denied for this

d) ED refuses call attempts, Scott Kalinowski refuses to acknowledge or reply to the email.

78. On 7.3.2018 an email exchange occurs.

a) Scott Kalinowski states:

(1) "Jesse will be at the storage facility Friday morning at 10:00am. Please confirm you will be there by replying and also confirm you will have phone service on Thursday as Jesse will call you the day before. If we do not receive your confirmation, another month of storage will be billed to your account. As per previous correspondence, invoice will need to be paid in full before release of items. Confirm your understanding and compliance by reply"

b) ED replies:

(1) "Please confirm that when I make arrangements that I am not going to have the same bullshit that I had with my containers. I am not having any issues with the date or time. I need to know that there won't be an issue with release and access before I make arrangements. Your not responding. I am not going to tell you I will be out all day Thursday waiting for Jesse's call. He can confirm with me early Friday morning. Address the other issues."

c) Scott Kailnowski responds with the same email, adding one additional line:

(1) "Jesse will be at the storage facility Friday morning at 10:00am. Please confirm you will be there by replying and also confirm you will have phone service on Thursday as Jesse will call you the day before. If we do not receive your confirmation, another month of storage will be billed to your account. As per previous correspondence, invoice will need to be paid in full before release of items. Confirm your understanding and compliance by reply. I am available by phone, feel free to call me."

d) ED states:

(1) "Why can you not simply respond to the request that you address the other issues previously asked of? This is not something I am in control of. Inform me of the status'. I can't work within your ransom demands when you won't specify what they are. Again I ask, is this intentional. Set me up to hold my stuff longer and charge me more? I hired movers to get my pods empty as I was told and agreed to. The morning of, I have six people that are not being permitted on the property. I don't have phone access. I'm at the computer."

e) Scott Kalinowski:

- (1) “Over the past 2 weeks I have addressed every single question. I am not going to repeat myself. It is not our problem that you do not have access to a phone. We find this very suspect since you were calling us frequently up until last week. As it stands now, we have received payment and are releasing your shipment. This is why we want your confirmation that you will be present at the storage facility this Friday morning July 6th at 10:00am with adequate labor so you can remove your items from the storage unit. That is all we are requesting. We await your confirmation,”
- f) ED states:
- (1) “You have not said anything other than ‘so you can remove your items from the storage unit.’ I have made it clear that the storage facility and the contracted movers won’t let me remove items myself. I can’t go in the unit! How does this work? Answer that question please. I don’t care how suspect you think things are. I can’t afford to stay in hotels with my current hostage situation.”
- g) Scott Kalinowski states:
- (1) “Again, there is no hostage situation. You have paid us and therefore we are releasing your shipment. *Our foreman Jesse* will have the key to the unit and will be present to open the unit for you. That is when your labor will need to be there to remove the items from the unit and sign off on our inventory list as we are releasing the items from our care. Please confirm you and your labor will be there Friday morning to remove the items from the unit so we can put an end to this fiasco.”
- h) ED responds:
- (1) “I set the date and time. I have no problem confirming. You won’t say whether you are arranging access for me around the denial of entry or if you are going to have someone there to bring my stuff out.”
- i) Scott Kalinowski replies:
- (1) “Thank you for confirming you will be there with your labor at 10:00am on Friday July 6th. I am saying that *our foreman Jesse* will be there with the key so he can open the unit for you. AS REPEATED NUMEROUS TIMES SINCE LAST WEEK, NO WE WILL NOT BE REMOVING THE ITEMS FROM THE UNIT. YOUR DESIGNATED MOVER (DAWNE HARRIS / HER COMPMAY) IS TO BE HANDLING THE REMOVAL OF THE ITEMS. THAT IS WHY WE WERE CONTACTING HER TO LET HER KNOW THE DATE AND TIME. SHALL I CALL HER BACK OR WILL YOU BE CONTACTING HER TO MAKE SURE THEIR CREW IS THERE FRIDAY MORNING AT 10:00AM TO REMOVE THE ITEMS FROM THE UNIT?”
- j) ED responds knowing Scott is fully aware of bypassing ED’s scheduled move date with the refusal of IVL to accept a credit card:

- (1) "I told you numerous times that Dawne only reflected the first scheduled move. Her crew is not involved since you made me do an ACH and I had to reschedule my move. Hence... the reason I keep asking. How does this work since I am not allowed to remove items from the unit? I have my end covered. I have no control of your end. I am not permitted to enter that unit."
- k) Scott Kalinowski advises:
- (1) "*Our foreman* is permitted to open the unit so you can remove you items with whatever moving crew you have there. Since we have the unit rented and our foreman has the key to open it, I don't see any issue. I cannot continue to write the same things over and over. You will need to find a phone and call me. PLEASE CONFIRM YOU AND YOUR MOVING CREW WILL BE THERE FRIDAY MORNING AT 10:00AM SO YOU CAN REMOVE YOUR ITEMS."
- l) ED replies:
- (1) "I need to deal with other email items I can't leave to find a signal. The facility manager was instructed to put a second set of locks on that door and refuse entry to me. The storage unit has someone else's belongings in it as well as mine. It is illegal for them to let me in for liability reasons. I have been refused entry to that unit whether Jesse is present or not. They refused to open the gates for me for my pods because of it."
- m) Scott Kalinowski responds:
- (1) "Since we have the unit rented, Jesse will have the key and will speak to the facility manager to advise them of what is being done. You did not rent the unit so it makes sense that they would not let you in there. However, *we did rent the unit and Jesse has the key* so he is allowed in there. All I am asking you to confirm is that you will have adequate labor to help you remove the items from the storage unit on Friday morning at 10:00am? Please keep in mind you brought this all on yourself by delivering PODS to the storage facility in the first place which no one was aware of."
- n) ED advises:

(1) "Maybe you should look further into it, as I have repeatedly requested. I have documentation that states, from your company several times... "in our warehouse." Mini U-storage is not your company's warehouse, as made obvious by the complications that arose from the lies from your company stated in regard to my storage pods, and my being able to be there upon container loading to pick and choose what was shipped or what wasn't. You don't have control over this facility's policies and guidelines. Your company made a secondary agreement with Cobra Van Lines. The unit, it's not in my name in any way. I'm not the primary renter, nor the secondary in a contract with them. I have no say as far as they are concerned. Entry for me and any labor crew I acquire is illegal. This needs to be handled on your end. I am not willing to break the law because you don't see the issue that I keep bringing to your attention again and again. You haven't written any thing "over and over," you have not acknowledged this issue once at this point. I have no problem on my end. I am not accepting the blind, we said yes they said no, we weren't aware. I am bringing this to your attention again. I can't control this. I won't pay and schedule again to be locked out and denied entry."

o) Scott Kalinowski retorts:

(1) "I don't think you read or maybe you are not comprehending, we have the storage unit rented and we have the key and authority to open it. For the last time, are you going to be at the storage unit on Friday morning at 10:00am with your crew, YES or NO?"

p) Ed is offended, yet respectfully replies twice:

(1) "The fact that neither Nico nor Karin informed YOU of my pods does not make it not so. It was a major element of my communications with Nico as this move was being blotched and bandaged. It is also documented in my correspondence from June 4, 2018. You have orally stated, more than once that you refuse to review all correspondence that transpired. While I commend your support of your employees; you are operating from a partial awareness standpoint. Many things have transpired that no one said to you obviously."

(2) "Funny that you say that. COBRA VAN LINES is who has that unit technically rented. I was specifically informed that they DO NOT!! work with your company. Corporate rules and regulation dominate. Not IVL, not OSI, not Cobra Van Lines. I read and comprehend very well. I don't appreciate the insult nor the demeanor."

q) Scott Kalinowski replies:

(1) "For the last time, are you going to be at the storage unit on Friday morning at 10:00am with your crew, YES or NO?"

r) ED responds with the request:

(1) "For the last time, commit to ensuring that you have arranged on all levels for my having entrance/access or commit to someone bringing my items outside the door for me."

s) Scott kalinowski advises:

- (1) "As previously confirmed, Jesse will be there at 10:00am on Friday morning with key in hand to open the unit. Please confirm you will be there with your designated moving crew to unload the items from the unit and sign off on the inventory list. Once that is all completed, this fiasco will be over with."
- t) ED responds:
- (1) You believe quite a few things that are not accurate. Jesse was there when I was told absolutely not during the pods fiasco. He can confirm that the manager stated that Mini U-Storage Corporate policy won't allow it. I can confirm and be there if I am assured that my crew can go in or yours will bring my things out. Your company's word has been trumped by Mini U-Storage's rights and privileges here recently. This does not instill confidence in your say in this. I worked with, fed and tipped the Cobra crew very well when they loaded. I have had extensive conversations with the property manager regarding the company's stance. You verbatim, told me that \$9,000 dollars of this move was for moving my things less than 25 miles into storage. You lost my trust in you or your company's word. You will not be here to open that gate Friday morning. Have the Mini U-Storage manager email me or leave me a message on my phone and confirm that your plan will be acceptable under their guidelines. Ultimately she is the gatekeeper. If you say yes, but she says no you will once again hold me at fault. Believe that I am beyond tired of this. I want nothing more than an end to it all with IVL. I have done nothing more than mistakenly place my trust, money, and belongings in a company that has failed to perform. PLEASE!! End this properly.
- u) Scott Kalinowski then advises:
- (1) "I just personally spoke with Tamara (facility manager) that knows who you are from the PODS delivery. She confirmed that you will be allowed to remove your items from the unit with your crew once Jesse has opened it and you sign off on our inventory list. Now I need your confirmation that you and your crew will be there Friday morning at 10:00am to remove your items, awaiting your reply".
- v) ED replies, noting the demand to sign first, reiterates that all contingencies have not been addressed:
- (1) "Back into the circle of no response... I will not sign off until the inventory list is checked, not before. I will not be forced to say everything is there before I am allowed to check it and truly know each inventory piece is accounted for less the two pieces I know didn't make it"
- w) Scott Kalinowski responds:
- (1) "So this confirms you will be at the storage facility Friday morning at 10:00am with adequate crew to help you remove the items from the unit correct?"
- x) ED states:
- (1) "I certainly will as long as it is also confirmed that I am not being forced to sign the inventory sheet without seeing my belongings first. You have not directly addressed this."

- y) Scott kalinowski does not respond.
 - z) No further exchanges occur on 7.3.2018.
79. On 7.5.2018 Scott Kainowski emails:
- a) "Of course you will be able to see your items and thus you will need to sign off on the inventory list since you are taking them back into your possession. All is sent on our end for Jesse to be at the storage facility tomorrow morning at 10:00am. Please confirm that you and your crew will be there."
80. On 7.5.2018 ED advises that no phone calls have been received from Mini U-Storage nor IVL's self proclaimed foreman Jesse.
81. On 7.6.2018 ED has made adequate arrangements, reconfirms arrangements and heads out across town to the storage facility.
- a) ED advises that:
 - (1) "I still haven't heard from Jesse. I'll be there at 10."
 - b) Scott Kalinowski replies:
 - (1) "As per previous correspondence, Jesse will be calling you this morning. But the phone call really does not matter at this point because you have been made aware that you are to be present at the storage facility at 10:00am this morning with your crew to remove your items (this is the date you requested)."
82. On 7.6.2018 ED calls Scott Kalinowski at 9:30 am from the storage facility property to advise of current status and for final confirmation.
- a) ED, spouse, two friends, six men hired and two trucks are ready in wait.
 - b) ED is initially advised that IVL's foreman was on sight waiting.
 - c) ED confirms then advises that he is not present.
 - d) Scott Kalinowski states he will follow up, returns a call stating they are in transit, should arrive shortly.
83. On 7.6.2018 at approximately 11:15 ED becomes engaged in a series of excuses and explanations for the next two or so hours:
- a) Jesse the foreman is sick,
 - b) The foreman overslept,
 - c) Someone else is on the way
 - d) The keys are lost,
 - e) Jesse is now on his way
 - f) Jesse is a no show we can cut the locks
 - g) We need notarized authorization from contracted companies owner in NJ as per Mini U-Storage company's policy

- h) acceptability of authorization aside, this process will not be instantaneous
 - i) additional fees may be incurred by doing so,
 - j) Owners need to contact IVL
 - k) rescheduling needs to occur
 - l) ED becomes responsible to coordinate with subcontractor Cobra Van Lines,
 - (1) Subcontractors have mysteriously lost their employment status and have now become a separate entity beyond any control of IVL
 - m) Whoops...Maybe next Friday? is the final say,
 - n) those hired to help were not making money waiting, they had long since left for another job
84. On 7.6.2018 hours later ED has communication with Charlie, identified as the owner of Cobra Van Lines, the company contracted by IVL directly. An apology is offered and assurance that what ever new date and time ED scheduled would be met. ED leaves late afternoon, after a day of pointless frustration without belongings.
85. On 7.7.2018 ED must once again reschedule everything.
- a) pick-up coordination,
 - b) storage arrangements,
 - (1) All items must be moved to a facility that can actually accommodate a 40' container for future loading
 - (2) IVL never addresses the inability to ever load from this facility
 - c) hiring labor,
 - d) renting trucks,
 - e) extension of accommodations,
 - f) travel plans, air and accommodations in both Belize and Colorado,
 - (1) Temperatures are well above the 86 degree allowance for transportation of our elderly dog have been surpassed.
 - g) and fulfillment of obligations in Belize
 - h) all possible last minute options have been exhausted,
 - i) High move season, along with many cancellation limits available moving crews
 - j) repeated cancellations are leaving us unfavorable for repeat request due to lost income
 - k) encroachment on family and friends far surpasses excessive at this point
 - l) IVL does not respond to contact attempts
86. On 7.7.2018 ED advises Scott Kalinowski that rectification is expected via email:

- a) "This has gone on long enough. I need your company to return my belongings to me. Incompetence from the start on your company's behalf is why we are here. I have followed through with everything requested of me. You continue to fail. I have had enough of your rudeness, your nasty disposition and attempts to blame me for any part of this. You have never waited for me. You asked me to leave in expectation of a phone call to make arrangements for last Friday, one hour later you unrealistically demanded via email that I be there in an hour with a crew. You asked if I could read and comprehend. I clearly stated to you that I have either email or phone because of this calamity, not both. I sat in town waiting for a phone call. I had a trucks and crew scheduled for late afternoon last Friday. I never got a call. I could not tell them when. Do you or do you not run a moving company? I can't go through a drive through and acquire six men and a truck instantly. Since the start, your company has said one thing then did not follow through with your own words."
- b) "This has cost me too much time, energy and money. Having not received any communication prior to, I called you to confirm Friday morning at 9:30. You flat out lied and said someone was there waiting. No one is there waiting. The keys are said to be lost. Jesse was sick-overslept-had complications depending on who explained it. You said someone else was already there with the keys. An hour later someone else says he was on another move with that company, would let us in, but Jesse had the keys anyway. Jesse will be here in 20 minutes. No one shows. We are going to cut the locks, and just get you in. We need to wait for a notarized statement from the contracting company's owners in NJ to cut the lock off because it is company policy. This is the third time we have spent HOURS sitting in a storage facility's lot in the blazing hot sun for nothing."
- c) "For the third time now I have met your varied ransom demands. I still don't have my furniture. For me, all three times, it's more than an hour drive for me each way, time off, time spent making arrangements, I've paid for labor, rented equipment, SHOWED up and you failed to perform. I was there wasting my spouses work time and mine again. Six additional men, two trucks; wasted time, gas and expense. Two and a half hours wasted waiting to no avail to open the lock on the door. I had worked out a good deal with the crew I hired, they refused to return. Too much time and money at loss already. I can't find anyone else on short notice at the beginning of the month, high move season."
- d) "None of this should be my responsibility at all. Our contract was to move me to Belize. I pay you, you pick up and deliver my belongings. You failed to bring a container nor an international wrapping/loading crew as agreed upon. You failed to provide white glove service, you failed to provide the packing and wrapping materials agreed upon. My stuff was thrown in storage 20 minutes away. I have done above and beyond my part. I paid you a third of the cost of this move, and have had to pay out just about as much for rectifying the ramifications of your failures. In two months you can't get my stuff out of Denver storage more less to Belize. This is interfering with everything, all other travel plans and arrangements. This is costing me more. I could have hired 3 men a truck and two months storage for less than \$2500, not the costs I am currently running at, with all my things still stuck in storage in Denver. It's actually now further away from Belize than when I started. Your company needs to step up, take ownership of this failure and find some ethical, moral, professional standards, and make this right."

- e) "At this point with the \$6000 that I have paid to your company unjustly, the lack of coordination and competency on your end, you need to remove my items from your storage facility and transfer them to mine. I have lost two scheduled and confirmed shipping opportunities because of you. My move now has to be delayed again and more storage will be required. I will have to buy duplicates of items I own and that should be there already to live, for months now, when I arrive. I have asked more than once to escalate this matter to the owner. I would hope that this has all been an unacceptable experience for a client of their company and how it will reflect on his business' reputation at the end of this. I have been hoping that the owner is not in business to swindle and scam. Hoping that virtue and integrity prevail. This is a breach of contract, fraud, deceptive trade practice, gross negligence and intentional misconduct. You failed. Multiple times. Fix this."
87. On 7.8.2018 ED makes many futile attempts to contact Cobra Van Lines to coordinate once again a pick up date. NO response is received.
- a) ED did not hire Cobra Van Lines. ED has no responsibility to coordinate this facet.
88. On 7.9.2019 ED begins another email exchange with IVL:
- a) Scott Kalinowski responds
 - (1) "As per your phone call (with the owner Charlie) on Friday, he is awaiting your call to provide a date & time to meet that is established by you. We cannot be any more accommodating than that. Please reply with your specified date & time and we will inform Charlie. Please also call him to confirm the same, he is waiting to hear from you. Charlie / 551-999-0696."
 - b) ED notes
 - (1) "I called Charlie three times yesterday. No answer. I did not contact Charlie"
 - c) ED is advised that,
 - (1) "I just spoke to Charlie, he said he did not receive any missed calls from you yesterday. He asked if you could call his office right now, 888-939-9595."
 - d) ED offers screen shots of call attempts for validation and request that IVL concede to participate in rectification by providing labor services
 - e) ED's request is not acknowledged
 - f) ED continues efforts to contact Charlie
89. On 7.10.2018 Scott Kalinowski states,
- a) "We are waiting for you to let Charlie (and us) know the date and time that works for you. Please advise when you will have a moving crew at the storage facility to remove your items? We want the items removed from the storage unit just as much as you want your items returned. However, we are all waiting on you to advise us of the date & time."
 - b) ED spends more time attempting to coordinate with Charlie.

- c) when reached ED, agrees to prepare for 7.12.2018 at 9:30 a.m.
 - d) ED advises Scott Kalinowski: "I spoke with Charlie. I can't keep a connection. I have to go. Confirm with us both Thursday at 9:30."
90. On 7.11.2018 Scott Kalinowski responds
- a) "We have received confirmation from Charlie that the date & time is set for tomorrow morning Thursday July 12th at 9:30am. Please be there with your crew to remove the items from the unit. "
91. On 7.12.2018 Scott notes
- a) "This email is to re-confirm the appointment time for this morning at 9:30am at the storage facility. Please be there with your crew to remove the items from the unit."
92. On 7.12.2018 ED, help, a hired crew and rented trucks arrive to the facility at 9:15 a.m.
- a) There is again no one there upon arrival.
 - b) Jesse arrives at approximately 10 a.m.
 - c) Jesse does not have the keys to open the unit.
 - d) Jesse advises his girlfriend is bringing the key.
 - e) It is just after 12 p.m. when access is finally granted.
 - f) Once again the hired moving crew has left due to the wait.
93. Upon opening the unit ED is advised that the inventory sheet must be signed before unloading occurs. ED determines it to be unacceptable to sign documentation that states items have been received, accounted for, and in good condition, prior to verification.
94. ED refuses to sign.
- a) Time is not being allotted to verify content and condition of items.
 - b) Many items were broken, many boxes were crushed.
 - c) Glass pieces were falling out of boxes.
 - d) boxes with fluids were smashed and leaking.
 - e) ED scavenged parts and pieces lying around the whole time.
 - f) Items were visibly scratched, damaged, and flat out broken
95. During the move Jesse advises that he must leave and again requests ED sign.
- a) ED apologizes for how long the process is, despite the direct fault of loss of help being due to Jesse not arriving on time with keys.
 - b) ED again refuses to sign until transfer is complete and documentation valid.
 - c) Jesse leaves, requesting ED submit signed inventory upon completion.

96. On 7.13.2018 early morning the shipment has been transferred to ED. Jesse was unable to coordinate meeting to address paperwork. Rest is now ED's only priority.
97. On 7.14.2018 ED initiates communication.
- a) ED emails Scott Kalinowski
 - (1) "How are missing and broken items to be handled?"
 - (2) no response is received
98. On 7.16.2018 Scott Kalinowski responds
- a) "We don't see how that could possibly be since the shipment went right from your residence into the storage facility where it remained under lock & key until you removed the items last Friday. However, I have the carrier in copy so you can discuss it directly since he has the documents."
99. On 7.18.2018 ED travels to Belize.
- a) Obligations and commitments in Belize mandate compliance or irrevocable loss and consequences.
 - b) Losses have already resulted from cancellations, rescheduling, last minute planning penalties including increased air fares.
 - c) Delays prevent travel for a pet due to heat restrictions.
 - d) ED must separate from spouse and pet.
100. From 7.19.2018 through 7.24.2018 ED must navigate modification of plans to accommodate the current status as shipping is now on indefinite hold.
- a) ED is without a source of income as all supplies and equipment must be left behind,
 - b) funds and resources are severely jeopardized from this ordeal
 - c) reservations for accommodations have been lost,
 - d) bedding, linens, clothing, cookware and utensils, must be sought
 - e) supplies and materials owned and recently purchased must be substituted/replaced
 - f) travel arrangements for spouse and dog in 95 degree plus conditions through out the southern United States
101. On 7.25.2018 ED responds to the previous email:

- a) "Let me help explain. White glove service, wrapping, and all packing materials were not on the contractor's work order. They had no idea of what my move was supposed to be. Proper preparation for an international move did not exist. The following two hours were a battle between IVL and Cobra. The result was that the 3 men in a truck were ordered to not use ANY of the packing materials on their truck. NO pads, NO protection, NO wrapping for my white furniture sets, NO glass protection, NO art/picture protection... NOTHING on their truck. Load only. I stopped a mover from attempting to close a box with glass doors in it. The doors were just leaned against each other in the box prepared for proper wrapping. They stuck up out of the box. He tried to shut the box around them and put it in the truck. Wall mirrors were layered in my sheer curtains. My belongings were jammed into a storage unit with someone else's belongings. Pieces and parts of things on the floor. Crushed boxes. I saw my things during the storage pod fiasco. I have a couple of boxes that were inventoried and never made it on the the truck. How are missing and broken items to be handled?"

102. On 7.26.2018 Scott Kalinowski submits a PDF file that fraudulently depicts signed documents¹⁰ and states:

- a) "Attached is a copy of your signed inventory list and we do not see any exceptions noted on it regarding missing or damaged items. Again, we unsure how that could happen since the items went directly from your residence into the storage unit and remained under lock & key. The storage facility themselves even had their own separate lock on the unit."

103. ED **currently** has in possession, the original unsigned inventory pages¹¹. ED has had all original, bound copies, incomplete and unsigned since the unloading of the storage unit.

104. There is no question the submission is a forgery made from copies of the inventory list created at loading. ED replies advising:

- a) "Wow!! Is this really the direction that you are choosing to take? Just when I could not imagine your company being any worse you hit the peak. In addition to breach of contract, fraud, deceptive trade practice, gross negligence and intentional misconduct you choose to add forgery to the list of offenses. Your welcome to continue this path. I DID NOT sign anything. You may want to take a better look at those papers yourself. Neither the signatures nor the dates are mine. Nothing is noted as an exception any where. No notes, no check offs, no comments. Nothing is written anywhere else on any page but the forgeries. That document you sent is a falsified altered copy of my origin paperwork from pickup. Let me repeat. I DID NOT sign anything. I'm not sure, at this point, if you are getting or creating the lies. Amazed the owner has not intervened. You suggested that my attorney contact your legal department directly. Kindly provide that contact information."

- b) No response is received.

105. On 8.1.2018 ED requests legal contact information again:

¹⁰ A true and correct copy of the Documents is attached hereto as Exhibit "10."

¹¹ A true and correct copy of the Documents is attached hereto as Exhibit "11."

- a) "No comment, contact information nor response has been received. I can't imagine any reason for not following up on the forgery matter other than awareness. You were quick to offer legal contact information when forcing me to pay the ransom. Please provide now

106. On 8.2.2018 ED receives the final response from Scott Kalinowski:

- a) "That is the paperwork we received from Cobra. As you can see, the signature at origin looks exactly like the signature at destination. Either way, we cannot verify since we were not physically there. Are you saying you never signed either at pick up nor when you removed your items from storage? If that is the case, you will need to speak with Charlie & Jesse (Jesse was on the job and Charlie is the one who sent us the copies). Also, I am curious as to why you are saying you did not sign anything when I specifically instructed that you would need to sign for your items as you were removing them from Cobra's custody?

107. ED terminates all exchanges with IVL.

IV. CAUSATION

A. As set forth in the facts contained in the foregoing paragraphs, Respondents have violated and continue to violate the following provisions of the Shipping act:

1. 46 U.S. Code § 41102 (a)(b)(c)

- a) knowingly and willingly, directly or indirectly, by means of false billing, classification, report of weight, false measurement or any other other unjust or unfair means, obtain or attempt to obtain ocean transportation for property at less than applicable rates
 - (1) as Respondents were incapable of executing service provisions, solicitation of the Service Contract itself is an attempt to obtain ocean transport for property at less than rates that would otherwise apply; Respondents method of execution required intermediate movers and storage that were excluded when negotiating the agreement.
 - (2) based on internal invoices and incriminating correspondence, lower rates previously presented by Respondents attempted to obtain transportation contract at rates they later confirm to have been lower than what was applicable, Respondents additionally imposed other unlisted charges, stated to apply, as they extorted unjust charges and fees for cancellation
 - (3) improper classification of merchandise being transported, inaccurate or unavailable inventory listing, an accurate Bill of Lading was not generated
 - (4) false measurements were presented to obtain transport, Respondents subcontracted with Cobra Van Lines represented by Jesse Larrea, under false pretenses; Mr. Larrea arrived with a copy of the Service Contract that had service lines omitted. Mr. Larrea stated that his company was contacted for a simple load and delivery to storage

- (5) unfairly and unjustly, the subcontractor obligations were falsely reported; three men and a 26 ft. truck were inadequate, materials for wrapping and packing were not available, this did not coincide with services contracted for; accessibility for a 40' container was not even possible for future loading, neither multiple moves nor storage were discussed or agreed upon
- b) operating contrary to agreement
 - (1) services that were executed were not in accordance to the original Service Contract, nor the second altered version presented by the subcontractor
 - (2) second contract is a violation by it's existence; omissions, deletions and changes of service provisions are not in accordance to the Service Contract
- c) practices in handling property
 - (1) failure to establish, observe, and enforce reasonable regulation and practices relating to handling, storing or delivering property
 - (a) storage was neither desired nor contracted
 - (b) property was severely mishandled by subcontractors that were no more than three men and a rental truck
 - (c) items were improperly stored at a public storage facility in a shared space resulting in damages and loss of property
 - (d) property not delivered; Complainant retrieval was demanded
- 2. 46 U.S. Code § 41103 (a)
 - a) prohibition, disclosure of information
 - (1) a common carrier may not solicit or receive any information if it may be used to the detriment of the shipper
 - (a) upon mandate for property retrieval, Respondents demanded coordination with a professional team, this information was utilized detrimentally preventing transportation via a different company.
 - i) dates are "scheduled" without coordination or communication with ED
 - ii) failure to appear to release items on more than one scheduled date
 - iii) false invoices are submitted, payment options are changes, policies regarding release are altered creating undue delays
 - (1) ACH payment for deposit was made on 4.30.2018, it cleared and was accepted on 5.1.2108 to commence scheduling services to be rendered; the cancellation ransom ACH submitted pending 5 to 7 days to clear.
 - iv) failed to advise they were using public storage that could not accommodate access for a 40' container demanding extra services for release and loading
- 3. 46 U.S. Code § 41104 (1)(2)(a)(3)(4)(a)(d)(e)(5)(8)(10)

- a) A common carrier alone or in conjunction with others, may not directly or indirectly
 - (1) allow a person to obtain property transportation at less than established rates by means of false billing, classification, weighing, measurement or any unfair or unjust means. All were violated to obtain contractual agreements with ED as well as respective subcontractors
 - (2) provide service in the liner trade that is
 - (a) not in accordance with the rates, charges, rules and practices contained in a service contract entered into
 - (3) retaliate against a shipper by refusing , or threatening to refuse cargo space accommodations when available, or resort to other unfair or unjustly discriminatory methods because the shipper has patronized another carrier, or has filed a complaint, or for any other reason
 - (4) engage in any unfair or unjustly discriminatory practice in the matter of
 - (a) rates or charges
 - (b) loading and landing of freight
 - (c) adjustment and settlement of claims
 - (5) engage in any unfair or unjustly discriminatory practice in the matter of rates or charges with respect to any port
 - (6) give any undue or unreasonable imposition or unreasonable prejudice or disadvantage
 - (7) unreasonably refuse to deal or negotiate
- 4. 46 U.S. Code § 41105 (1)(2)(4)
 - (1) take any concerted action resulting in an unreasonable refusal to deal
 - (2) engage in conduct that unreasonably restricts the use of intermodal services
 - (3) negotiate with a non-ocean carrier on any matter relating to rates or services provided to ocean common carrier

V. **DAMAGES**

- A. ED has suffered and continues to suffer substantial damages as a direct result of the Respondents' violations of the Shipping Act. Respondent's failure to maintain contractual obligations along with breach of contract, fraud, forgery, deceptive trade practice, gross negligence and intentional misconduct, set in motion a series of events and circumstances that caused damages/losses to the Complainant. ED and spouse had VISA requirements that mandated their physical presence for a period of no less than 1 full consecutive year, without more than 14 days of absence to retain validity. As of the authoring of this document, the method of shipping belongings is unknown and unsecured. ED and spouse have essentially been "camping" for more than a year with all possessions in storage in Denver, CO.

1. ED seeks reparations for lost income and other related consequential and incidental damages arising from Respondents' violations of the Shipping Act.
 - a) lost income and wages endured throughout by ED and spouse,
 - b) relocation of the salon equipment for business did not occur. ED has been unable to generate an income, equipment and supplies for such were not shipped.
 - c) local laws and regulations prevent the ability to seek employment. Opening a business and providing employment is however, acceptable and was the planned intent.
 - d) financial obligations and responsibilities are all in default, FICO scores, reputations and credibility have been adversely effected.
 - e) quality of life has been severely effected.
2. ED seeks further reparations for all additional consequential expenses endured,
 - a) long term storage requirements
 - b) employment of several moving crews for labor, many unable to provide services hired for
 - c) all rental requirements; trucks, short term storage facilities, pods
 - d) all fees for expedited services and special service requests that were required
 - e) all fees associated with cancellation and revision charges imposed
 - f) all additional and revised travel and accommodation expenses that were required
 - g) all expenses incurred to obtain basic necessities: a bed, clothing, chairs, table, cookware, dishes and utensils, towels and linens, and etc., that would otherwise not have been needed.
3. ED seeks further reparations for actual loss and damage to said shipment including damages not yet accessed, as shipment damages have still not been fully evaluated due to circumstances.
4. ED seeks further reparations for pain and suffering, mental anguish and duress, damage/loss of consortium, along with any and all medical expenses directly associated with as a result.
5. ED seeks further reparations for punitive damages endured as the Respondents' wrongful behavior was despicable and reprehensible.

VI. REQUEST for RELIEF

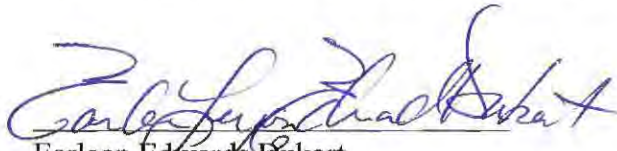
- A. Complainant requests that Respondent be required to answer the charges made in this complaint; that, after a hearing, the Commission order Respondents: to cease and desist from violations of the Shipping Act; that put in place are lawful and reasonable practices; that Respondents pay Complainant reparations for the unlawful conduct in the sum of \$256,241.00, with interest, court/legal/attorney's fees and any other sum the Commission determines to be proper; and that the Commission make any further orders as it determines to be proper.

VII. REQUEST for ORAL HEARING

- A. Should the Commission deem an oral hearing on this matter to be necessary, the Complainant requests that the hearing be held in Miami, Florida.

VIII. Verification

- A. Earlean Edwards Dukart, being duly sworn, states that as the Complainant in this proceeding, that the foregoing Verified Complaint is true based upon of information and knowledge that is documented, except as to matters stated to be alleged, on information and belief received from others, provided to Complainant, believed to be true.
- B. Pursuant to 28 U.S.C § 1746 (1), I verify under penalty of perjury under the laws of the United States of America the the foregoing is true and correct.



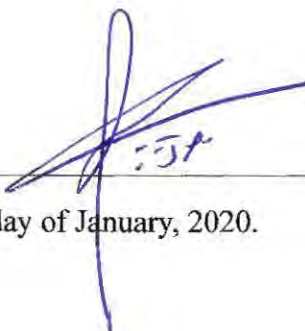
Earlean Edwards Dukart

1 Pelican Pathway,
Consejo Shores,
Corozal Town,
Belize, Central America
email: EarleanDukart@comcast.net
telephone: (813) 205 - 6109

Mailing Address:

Earlean Edwards Dukart
c/o Lula Greene
61 Overlook Drive
Oakdale, Pa 15071

- C. Subscribed and sworn to before me, a Justice of the Peace,



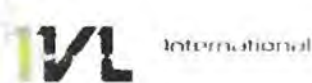
this 17th day of January, 2020.

David Rejón
Justice of the Peace
Businessman
8815th Avenue, Corozal Town, Tel: 600-8728

Index of Attachments

Exhibit 1	Moving Estimate, signed and dated by rep	Page 42
Exhibit 2	Invoice 6.1.2018	Page 44
Exhibit 3	Email cover page - Invoice 6.12.2018	Page 46
Exhibit 4	Invoice for New Movers	Page 47
Exhibit 5	Email Verifying Fictitious Fees	Page 48
Exhibit 6	Cancellation Invoice 1	Page 49
Exhibit 7	Email Verifying New Move Rescheduling	Page 50
Exhibit 8	Cancellation Invoice 2	Page 51
Exhibit 9	Cancellation Invoice 3	Page 52
Exhibit 10	Forged Release Forms	Page 53
Exhibit 11	Original Unsigned Forms	Page 58 thru 62

Exhibit 1



International Moving Estimate		Reference No: IN4005736															
International Van Lines 3957 Nw 126 Ave. Coral Springs 33065 US DOT: 2247789 MC: 729978 Registration #: FMC: 021051NF	Customer Rep: Nico Phone: 855-674-7447 Ext. 251 Fax: 954-337-0731 Email: nico@internationalvanlines.com Web: http://internationalvanlines.com/																
Moving From	Moving To																
Earlean Dukart Aurora, CO 80013 Phone: 813-205-6109 earleandukart@comcast.net	Earlean Dukart Corozal , BELIZE																
Extra Stop / Notes																	
• Door to door Full Container Load service • Container will be delivered to residence or warehouse for loading • Wrapping and loading by professional moving team • Intermodal trucking and/or rail transport • Transportation to the port of departure • Tolls/mileage • File processing for U.S Customs • THC/CSC at both Origin and Destination port • Ocean Freight charges • Destination household goods customs clearance • Door delivery/off loading/removal of debris																	
Job No: IN4005736 Estimate Date: 04/27/2018 Representative: Nico Type of Service: Door to Door Estimated Volume: 2000 cf. (14000 lbs.) Move Day: Wednesday Move Date: 05/09/2018 Created on: 04/27/2018	<table style="width: 100%;"> <tr> <td style="width: 30%;">Shipping:</td> <td style="width: 40%;">Door To Door 40 Foot Container</td> <td style="width: 30%; text-align: right;">\$17424.00</td> </tr> <tr> <td>Others:</td> <td>White Glove Service</td> <td style="text-align: right;">\$0.00</td> </tr> <tr> <td>Others:</td> <td>Wrapping, Loading And Securing Load.</td> <td style="text-align: right;">\$0.00</td> </tr> <tr> <td>Others:</td> <td>All Packing Material Included.</td> <td style="text-align: right;">\$0.00</td> </tr> <tr> <td>Total Estimate:</td> <td colspan="2" style="text-align: right;"> <i>Jose Larrin 5-10-18</i> \$17424.00 </td> </tr> </table>		Shipping:	Door To Door 40 Foot Container	\$17424.00	Others:	White Glove Service	\$0.00	Others:	Wrapping, Loading And Securing Load.	\$0.00	Others:	All Packing Material Included.	\$0.00	Total Estimate:	<i>Jose Larrin 5-10-18</i> \$17424.00	
Shipping:	Door To Door 40 Foot Container	\$17424.00															
Others:	White Glove Service	\$0.00															
Others:	Wrapping, Loading And Securing Load.	\$0.00															
Others:	All Packing Material Included.	\$0.00															
Total Estimate:	<i>Jose Larrin 5-10-18</i> \$17424.00																
Understanding Your Estimate																	
Hi Earlean, It was a pleasure speaking to you regarding your upcoming shipment to Belize. Based on the information you provided me with (40 foot container) above is your door to door rates, Please keep in mind that for international shipment anything under 30 days is consider last minute, if you like the quote and service that I have provided, remember you could start the formalities. By doing so you will also be locking in your rates so in case of any increase your rates will remain the same. the company we hire to bring the container from the port will allow us two free hours to load the container anything above the two hours will be additional unless otherwise specified, furthermore note that chassis, scale fees and tolls are not included and might apply depending on the trucking company																	

available the day of pickup. Note that this rate is subject to change do to a GRI (general rate increase) coming up, also please note that transit times for containers can range from 6/8 weeks, this is just an approximate time, once the booking confirmation is sent to you it will have the ETA. Shared containers or LCL will take anywhere from 8/12 weeks from when it sails, these are also approximate time frames. Also, please note that when doing international shipment, you are responsible for any port fees at the destination specially when going with a door to port or port to port. Furthermore, please note that any shipment going above a second floor might encounter additional fees from the destination agent. You will receive an invoice for the quoted amount prior to loading of container. To avoid the rescheduling of your loading date, please ensure payment is remitted upon receipt of invoice. If any additional fees are incurred on day of loading, you will receive a final invoice at a later date. **Keep in mind that we are NOT Brokers, we are an NVOCC making your shipping faster, smoother and more reliable for your convenience** Hope to hear back from you soon!

International Van Lines has been in business for over 20 years and maintains one of the best reputations in the shipping/moving industry. Due to the sheer volume of moves we handle we're able to offer our customers a significant savings. IVL is fully licensed by the [Federal Maritime Commission](#) (021051NF) and Department of Transportation.

We thank you again for requesting a quote from IVL. We will match or beat any quote as long as we're comparing apples with apples and it must be a quality company.

If your shipment is taking place within the next 30 days we will need confirmation right away. Please remember that there is documentation that we will need to handle before we schedule a pick up date.

If you have any questions regarding your quote, exclusions or the services we provide please speak directly with your relocation coordinator. We thank you again for the opportunity and wish you the best with your relocation.

Copyright 2000 - 2017 International Van Lines Federal Maritime Commission 021051NF DOT 2247789 MC 729978

Click on [Online Electronic Signature](#) to confirm your move online.

If you no longer wish to receive emails from International Van Lines, please click on [unsubscribe](#)



Exhibit 2

International Van Lines / Ocean Star International
3961 NW 126 Ave.
Coral Springs FL 33065
United States



International Van Lines

Earlean Dukart
Earlean Dukart
Belize

Invoice # IN4005736
Invoice Date June 1, 2018
PO # Due Upon Receipt
Balance Due (USD) \$14,424.00

Item	Description	Unit Cost	Quantity	Line Total
Due Now		0.00	1	0.00
Initial Quote	Door to Door / 40ft Container	17,424.00	1	17,424.00
Total				17,424.00
Amount Paid				-3,000.00
Balance Due (USD)				\$14,424.00

Terms

Payment Terms:

***Please be advised that all invoices are due

upon receipt in order to avoid any delays or service disruptions. A late payment fee of 2% of your invoice per day will apply until payment has been received in full.***

Payment Options:

We accept all forms of payment including Credit Card, Wire, ACH and direct cash deposit payments.

If you would like to pay via ACH (online check) please visit the following link:

<https://smartpay.profitstars.com/express/OSICPP>

If you would like to pay via wire transfer please see the wire details below.

Wire Transfer Details:

JP Morgan Chase Bank
10585 Wiles Rd
Coral Springs, FL 33076
Routing no. 267084131
Account no. 868350500
Swift Code. CHASUS33 (for international only)
Beneficiary Name: Ocean Star International Inc

Direct Deposit Instructions:

Ocean Star International Inc
954-753-4533
3961 NW 126th Ave
Coral Springs, FL 33065

Account # 868350500

We thank you for your support and please feel free to contact us with any questions.

Notes

***Your payment of your quoted amount is due NOW in order to proceed with your loading. In the event that there are any additional fees for additional loading time, extra packing/materials, chassis, insurance etc... you will receive a new bill at a later date. Please let me know if you have any questions and submit payment ASAP! ***

PAYMENT STUB

International Van Lines / Ocean Star
International
3961 NW 126 Ave.
Coral Springs FL 33065
United States

To Pay Your Invoice Online

Go to <https://oceanstarintl.freshbooks.com/code> and enter the code xBQSNikHyQTjiF9

Client	Earlean Dukart
Invoice #	IN4005736
Invoice Date	June 1, 2018
Balance Due (USD)	\$14,424.00
Amount Enclosed	

Exhibit 3

From: **Karin Neuber** karin@internationalvanlines.com
Subject: FW: [International Van Lines / Ocean Star International] New invoice IN4005736
Date: June 12, 2018 at 9:55 AM
To: Earlean Edwards Dukart earleandukart@comcast.net

Earlean, My accounting team has just informed me we are still pending payment on the below shipment invoice.
Please urgently have payment issued as it is required prior to the container being loaded at the warehouse.

International Van Lines / Ocean Star International



To view your invoice from International Van Lines / Ocean Star International for 18,000.96, or to download a PDF copy for your records, click the link below:

<https://oceanstarintl.freshbooks.com/view/PeRSkVm5XRbTidR>

We appreciate your business. If you have any billing questions please email Dana@osishipping.com or erika@osishipping.com



Exhibit 4



Centennial, CO 80112

Invoice Date: 6/14/2018
Invoice #: 56384
Order #: B113-446-8
Customer #: 070617

Amount Due: \$3,372.00

Amount Paid: \$ _____

EARLEAN EDWARDS
DUE UPON RECEIPT

Remit To:
Baron Worldwide, LLC
7009 S Jordan Rd
Centennial, CO 80112
303-783-3696

Please detach and return this portion with your payment. Thank you.

Invoice Date: 6/14/2018
Invoice #: 56384
Order #: B113-446-8
Customer #: 070617

Centennial, CO 80112

Remit To:
Baron Worldwide, LLC
7009 S Jordan Rd
Centennial, CO 80112
303-783-3696

Shipper: EDWARDS, EARLEAN	Salesperson: Bassin, Sam	Hauled Wt: 14000	Miles:
Origin: 3900 E 45th St DENVER, CO 80216 United States of America	Destination: CONSEJO SHORE Belize	Tariff:	

Item #	Description	Quantity	Unit	Rate	Gross	Discount	Amount
	20% DEPOSIT OF ACCEPTED QUOTE FOR \$16860.00 / SELF STORAGE TO BELIZE	1.00	Flat	3372.00	\$3,372.00		\$3,372.00

Amount Due: \$3,372.00

Payment Due Upon Receipt.

Exhibit 5

From: "Erika Snow" <erika@internationalvanlines.com>
Subject: Container Invoice IN4005736
Date: June 15, 2018 at 2:22:46 PM MDT
To: <earleandukart@comcast.net>
Cc: "'Nico Restrepo'" <nico@internationalvanlines.com>, "'Scott Kalinowski'" <scott@internationalvanlines.com>, <dana@internationalvanlines.com>

Good afternoon Earlean,

Per your conversation with Scott, see attached updated invoice. We have deducted the credit card fee since that form of payment is no longer available. Our ACH and wire details are listed on the invoice.

Kind Regards,

Erika Snow

Accounting

Main: 954.510.4483 Ext. 238

Free: 855.674.7447

Fax: 954.337.0731

Erika@internationalvanlines.com

www.internationalvanlines.com

Exhibit 6

International Van Lines / Ocean Star International
3961 NW 126 Ave.
Coral Springs FL 33065
United States



Earlean Dukart
Earlean Dukart
Belize

Invoice # IN4005736
Invoice Date June 18, 2018
PO # Due Upon Receipt
Balance Due (USD) \$3,241.00

Item	Description	Unit Cost	Quantity	Line Total
Rendered Services	pickup, packing, custom crating (pool table) and 1 month storage	6,091.00	1	6,091.00
Cancellation Fee		150.00	1	150.00
		Total		6,241.00
		Amount Paid		-3,000.00
		Balance Due (USD)		\$3,241.00

Terms

Payment Terms:

Please be advised that all invoices are due upon receipt in order to avoid any delays or service disruptions. A late payment fee of 2% of your invoice per day will apply until payment has been received in full.

Payment Options:

Wire, ACH and direct cash deposit payments.

If you would like to pay via ACH (online check) please visit the following link:

<https://smartpay.profitstars.com/express/OSICPP>

If you would like to pay via wire transfer please see the wire details below.

Wire Transfer Details:

JP Morgan Chase Bank
10585 Wiles Rd
Coral Springs, FL 33076
Routing no. 267084131
Account no. 868350500
Swift Code. CHASUS33 (for international only)
Beneficiary Name: Ocean Star International Inc

Direct Deposit Instructions (cash only):

Ocean Star International Inc

Exhibit 7

From: **Sam Bassin** sam@johnson-united.com
Subject: RE: earlean
Date: June 18, 2018 at 3:18 PM
To: Earlean Edwards Dukart earleandukart@comcast.net
Cc: Dawne Harris dharris@johnson-united.com

BB

Hi Earlean,

Since its too late for tomorrow pickup I re-scheduled your load for Monday June 25th. This is the best that we can do at this time and it will allow you to sort everything out by Friday this week including the deposit.

Dawne Harris the coordinator is in Copy.

Sincerely,

Samuel Bassin

President



Johnson International

FIDI-FAIM ACCREDITED MOVER

MEMBER OF: UGWW, LACMA, IAM, IMC, ERC, AMSA, RIM, CMSA

D: 303-785-4347

C: 847-878-2137

F: 303-698-2154

www.johnsonstorage.com

LOCATIONS: Denver CO, Centennial CO, Colorado Springs CO, Boulder CO, Topeka KS, New Orleans LA, Dallas TX, Santa Fe NM, Cheyenne WY, San Diego CA.



Johnson International is a global logistics business that helps families, government and businesses store and move their goods around the world. We specialize in white glove

Exhibit 8

Invoice: Dana Cipolla

<https://oceanstarintl.freshbooks.com/showInvoice?invoiceid=2776079&r...>

International Van Lines / Ocean Star International
3961 NW 126 Ave.
Coral Springs FL 33065
United States



International Van Lines

Earlean Dukart
Belize

Invoice # IN4005736
Invoice Date June 18, 2018
PO # Due Upon Receipt
Balance Due (USD) \$3,241.00

Item	Description	Unit Cost	Quantity	Line Total
Crating Fee	custom crating of pool table	700.00	1	700.00
Movers	wrapping, loading, unloading and reloading	4,500.00	1	4,500.00
Storage		891.00	1	891.00
Cancellation Fee		150.00	1	150.00
Total				6,241.00
Amount Paid				-3,000.00
Balance Due (USD)				\$3,241.00

Terms

Payment Terms:

***Please be advised that all invoices are due

upon receipt in order to avoid any delays or service disruptions. A late payment fee of 2% of your invoice per day will apply until payment has been received in full.***

Payment Options:

Wire, ACH and direct cash deposit payments.

If you would like to pay via ACH (online check) please visit the following link:

<https://smartpay.profitstars.com/express/OSICPP>

If you would like to pay via wire transfer please see the wire details below.

Wire Transfer Details:

JP Morgan Chase Bank
10585 Wiles Rd
Coral Springs, FL 33076
Routing no. 267084131
Account no. 868350500
Swift Code. CHASUS33 (for international only)
Beneficiary Name: Ocean Star International Inc

Direct Deposit Instructions (cash only):

Ocean Star International Inc
954-753-4533

Exhibit 9

International Van Lines / Ocean Star International
3961 NW 126 Ave.
Coral Springs FL 33065
United States

PAID



International Van Lines

Earlean Dukart
Earlean Dukart
Belize

Invoice # IN4005736
Invoice Date June 18, 2018
PO # Due Upon Receipt
Balance Due (USD) \$0.00

Item	Description	Unit Cost	Quantity	Line Total
Crating Fee	custom crating of pool table	700.00	1	700.00
Movers	wrapping, loading and unloading	4,000.00	1	4,000.00
Storage		891.00	1	891.00
Cancellation Fee		150.00	1	150.00
Total				5,741.00
Amount Paid				-5,741.00
Balance Due (USD)				\$0.00

Terms

Payment Terms:

Please be advised that all invoices are due upon receipt in order to avoid any delays or service disruptions. A late payment fee of 2% of your invoice per day will apply until payment has been received in full.

Payment Options:

Wire, ACH and direct cash deposit payments.

If you would like to pay via ACH (online check) please visit the following link:

<https://smartpay.profitstars.com/express/OSICPP>

If you would like to pay via wire transfer please see the wire details below.

Wire Transfer Details:

JP Morgan Chase Bank
10585 Wiles Rd
Coral Springs, FL 33076
Routing no. 267084131
Account no. 868350500
Swift Code. CHASUS33 (for international only)
Beneficiary Name: Ocean Star International Inc

Direct Deposit Instructions (cash only):

Ocean Star International Inc

Exhibit 10

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SAC LOT NO. **4E4582**

HOUSEHOLD GOODS DESCRIPTIVE INVENTORY

CONTRACTOR OR CARRIER Cobra Van Lines		TAX COLLECTOR Orange	THRU 180	TRUCK NO. 1	NO. OF PAGES 5
CONTRACT OR INVOICE NO. Fanleon Du Kart		CARRIER'S REFERENCE NO.			
CONTRACT OR ORL. NO.		CONTRACT OR ORL. NO.			
SHIPMENT ADDRESS 704 S. Bahama St. Aurora, CO 80013		STATE CO		DEPT. ADDRESS ORIGIN NO.	
ORIGIN		VHS NUMBER			

DESCRIPTIVE SYMBOLS

1 - RESTAURANT AS IN ORIGIN
2 - RESTAURANT AS IN ORIGIN
3 - RESTAURANT AS IN ORIGIN
4 - RESTAURANT AS IN ORIGIN
5 - RESTAURANT AS IN ORIGIN
6 - RESTAURANT AS IN ORIGIN
7 - RESTAURANT AS IN ORIGIN
8 - RESTAURANT AS IN ORIGIN
9 - RESTAURANT AS IN ORIGIN
10 - RESTAURANT AS IN ORIGIN

EXCEPTION SYMBOLS

1 - RESTAURANT AS IN ORIGIN
2 - RESTAURANT AS IN ORIGIN
3 - RESTAURANT AS IN ORIGIN
4 - RESTAURANT AS IN ORIGIN
5 - RESTAURANT AS IN ORIGIN
6 - RESTAURANT AS IN ORIGIN
7 - RESTAURANT AS IN ORIGIN
8 - RESTAURANT AS IN ORIGIN
9 - RESTAURANT AS IN ORIGIN
10 - RESTAURANT AS IN ORIGIN

LOCATION SYMBOLS

1 - RESTAURANT AS IN ORIGIN
2 - RESTAURANT AS IN ORIGIN
3 - RESTAURANT AS IN ORIGIN
4 - RESTAURANT AS IN ORIGIN
5 - RESTAURANT AS IN ORIGIN
6 - RESTAURANT AS IN ORIGIN
7 - RESTAURANT AS IN ORIGIN
8 - RESTAURANT AS IN ORIGIN
9 - RESTAURANT AS IN ORIGIN
10 - RESTAURANT AS IN ORIGIN

NOTE: THE COMBINATION OF THESE SYMBOLS INDICATES GOOD CONDITION EXCEPT FOR NORMAL WEAR.

ITEM NO.	QTY.	DESC.	COND.	ARTICLE	CONDITION AT ORIGIN	EXCEPTIONS (IF ANY) AT DESTINATION	ITEM NO.
1		Box	Office	PBO 31	Shelf	SC	1
2		Box		PBO	Metal Pole	SC	2
3		Box		PBO	Metal Pole	SC	3
4		Box		PBO	Metal Pole	SC	4
5		Box		PBO	Metal Pole	SC	5
6		Box		PBO	Glass Shells	SC	6
7		Box		PBO	Shelf	SC	7
8		Box		PBO	Box	PBO	8
9		Box		PBO	Shelf	SC	9
10		Box	Office	PBO 40	Shelf	SC	10
11		Cushions		CP	Shelf	SC	11
12		Cushions		CP	Tote	PBO	12
13		Couch		CP	Shelf	SC	13
14		Chairs		CP	Box	PBO	14
15		Overhead Dryers		CP	Glass Table Top	SC	15
16		Overhead Dryers		CP	Box	PBO	16
17		Table		CP	Box	PBO	17
18		Ben		PBO	Table Part	SC	18
19		Shelf		SC	Table Part	SC	19
20		Shelf		SC 50	MINOR	SC	20
21		Mirror Walls		SC	Frame	SC	21
22		Mirror Walls		SC	Chair's	CP	22
23		Stool		SC	Chair's	CP	23
24		Shelf		SC	Box	PBO	24
25		Shelf		SC	Cards Box	PBO	25
26		Shelf		SC	Cups Box	PBO	26
27		Generator wheels		PBO	Hoses Box	PBO	27
28		Generator wheels		PBO	Shells Box	PBO	28
29		Shelf		SC	Salon Chair	SC	29
30		Shelf		SC 60	Salon Chair	SC	30

REMARKS/EXCEPTIONS

*WE HAVE CHECKED ALL THE ITEMS LISTED AND INITIALED 1 TO 10 INCLUSIVE AND AGREEING THAT THIS IS A TRUE AND COMPLETE LIST OF THE GOODS DESCRIBED AND OF THE STATE OF THE GOODS RECEIVED

WARNING

CONTRACTOR OR CARRIER OR AUTHORIZED AGENT SIGNATURE
David Kanner

DATE
7-10-18

CONTRACTOR OR CARRIER OR AUTHORIZED AGENT SIGNATURE
David Kanner

DATE
7-12-18

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FORM 1189 INC. REV. 3/78

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HOUSEHOLD GOODS DESCRIPTIVE INVENTORY

CONTRACTOR OR CARRIER: Cobra Van Lines TAG: 019496 NO. 61 TIME: 120 PAGE NO. 3 OF 3 PAGES

ORIGIN: Barleed DuKart AGENT: JD CARRIER'S REFERENCE NO.:

ORIGIN ADDRESS: 3143 S. Bahama St., Aurora, C.O. 80013 CITY: AURORA STATE: CO CONTRACT OR BILL NO.:

DESTINATION: Van Nuys VOY. SERVICE ORDER NO.:

DATE: 7-12-18

ITEM NO.	QTY	BRAND	MODEL	DATE	ARTICLES	CONDITION AT ORIGIN	EXCEPTIONS (IF ANY) AT DESTINATION	ITEM NO.
61					Mattress PBO	Hair Product PBO		1
2					Sound Bar CP	Tote Hair Product PBO		2
3					TV CP	Box Hair Product PBO		3
4					Shelf SC	Box Tote supply CP		4
5					Shelf SC	Box Junk + Radio CP		5
6					Shelf SC	Glass Doors CP		6
7					Hair Product's PBO	Shelf CP		7
8						Bar Part's CP		8
9						Box Bag's CP		9
10						Office supply's PBO		10
1						Photo's + Paper PBO		1
2						Office supply's PBO		2
3						Box Shelf's PBO		3
4						Box Living Room PBO		4
5						Box Office supply's PBO		5
6					Hair Product's PBO	Tote Cleaning supply's PBO		6
7						Box Dog toys PBO		7
8						Box Kitchen supply's PBO		8
9						Box Hair Product PBO		9
10						Box Kitchen supply's PBO		10
1						Box Kitchen supply's PBO		1
2						Tote Office supply's PBO		2
3						Box PBO		3
4						Box Office supply's PBO		4
5						Box PBO		5
6						Box PBO		6
7						Box PBO		7
8						Box PBO		8
9						Box PBO		9
10					Hair Product's PBO	Box Office supply's PBO		10

REMARKS/EXCEPTIONS:

WE HAVE CHECKED ALL THE ITEMS LISTED AND NUMBERED 1 TO _____ INCLUSIVE AND ACKNOWLEDGE THAT THIS IS A TRUE AND CORRECT LIST OF THE GOODS TENDERED AND OF THE SOURCE OF THE GOODS RECEIVED.

WARNING

BEFORE SIGNING CHECK SHIPMENT COUNT ITEMS AND DESCRIBE LOSS OR DAMAGE IN SPACE ON THE FRONT ABOVE.

AT ORIGIN	CONTRACTOR, CARRIER OR AUTHORIZED AGENT DRIVER (SIGNATURE) <u>Maria Larriva</u> OWNER OR AUTHORIZED AGENT (SIGNATURE) <u>JD</u>	DATE TIME <u>7-12-18</u>	AT DESTINATION	CONTRACTOR, CARRIER OR AUTHORIZED AGENT DRIVER (SIGNATURE) <u>Maria Larriva</u> OWNER OR AUTHORIZED AGENT (SIGNATURE) <u>JD</u>	DATE TIME <u>7-12-18</u>
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Scanned by CamScanner

HOUSEHOLD GOODS DESCRIPTIVE INVENTORY

CONTRACTOR OR CLAIMANT Cobra Van Lines		THE LOT NO. 464582	PAGE NO. 3
SHIPMENT ORIGINATING AND NAME Donna L. Tuckert		DATE 12/1	TYPE 180
CITY 3743 S. Bahama St., Aurora, C.O. 80013		CONTRACT OR BILL NO.	
DESTINATION		GOVT. SERVICE ORDER NO.	
NOTE: THE ORIGIN OF THESE SYMBOLS INDICATES GOOD CONDITION EXCEPT FOR NORMAL WEAR.		VAN NUMBER	

ITEM NO.	QUANTITY	DATE	SYMBOL	ARTICLES	CONDITION AT ORIGIN	EXCEPTIONS (IF ANY) AT DESTINATION	ITEM NO.
121				Shelfs	PBO 151 Chair	CP	1
2				Stool	CP	Tote-Tools	PBO
3				Shelfs	CP	Table	SC
4				Stool	CP	Tool Box	PBO
5				Stool	CP	Yard Tools	SC
6				Stool	CP	Chop Saw	SC
7				Stool	CP	Blower	SC
8				Stool	CP	Table Saw	SC
9				Stool	CP	Vice-Table	SC
120				Shelfs	CP 160	Ramps	SC
1				Shelfs	CP	Box	PBO
2				Tools	PBO	Box	PBO
3				Light Kit Photos	PBO	Tote-Jack	PBO
4				Shelf	CP	Box Tool Box	PBO
5				Shelf	CP	Yard Tools	SC
6				Shelf	CP	Weld. Eater	SC
7				Shelf	CP	Dolly	SC
8				Rug	CP	Cart	SC
9				Box-Dishes	PBO	Metal Stand-Tools	SC
140				Salon Chair	CP	Box-Camping Fishing	PBO
1				Filing Cabinet	CP	Box-Carpentry Supplies	PBO
2				TV	CP	Tote-Camping Gear	PBO
3				Drill	PBO	Box-Carpenter Supplies	PBO
4				Box-Tools	PBO	Ladder	SC
5				Box-Tools	PBO	Ladder	SC
6				Tote-Tools	PBO	Ladder	SC
7				Tote-Tools	PBO	Box-Roller Blades-ed	PBO
8				Camp	PBO	Box-Tools-	PBO
9				Tackle Box	PBO	Box-Tool Chest	PBO
150				Chair	CP 150	Tote-Art Supplies	PBO

REMARKS/EXCEPTIONS:

WE HAVE CHECKED ALL THE ITEMS LISTED AND RETURNED 1 TO INCLUSIVE AND ACKNOWLEDGE THAT THIS IS A TRUE AND COMPLETE LIST OF THE GOODS TENDERED AND OF THE STATE OF THE GOODS RECEIVED.

WARNING BEFORE SIGNING CHECK SHIPMENT, COUNT ITEMS, AND DESCRIBE LOSS OR DAMAGE IN SPACE ON THE FRONT ABOVE.

AT ORIGIN	CONTRACTOR, CLAIMANT OR AUTHORIZED AGENT SIGNATURE Donna L. Tuckert	DATE 5-1-18	AT DESTINATION	CONTRACTOR, CLAIMANT OR AUTHORIZED AGENT SIGNATURE Donna L. Tuckert	DATE 7-12-18
	ORIGIN OR AUTHORIZED AGENT SIGNATURE File	DATE 5-1-18		ORIGIN OR AUTHORIZED AGENT SIGNATURE File	DATE 7-12-18

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FORM 1190 DEC 2002

HOUSEHOLD GOODS DESCRIPTIVE INVENTORY

CONTRACTOR OR CARRIER: **Cobra Van Lines**
 CONTRACTOR'S ADDRESS: **143 S. Bahama St., Aurora, CO 80013**
 CONTRACTOR'S PHONE NO.: **303-281-7457**
 CONTRACTOR'S FAX NO.: **303-281-7457**
 CONTRACTOR'S E-MAIL: **info@cobravans.com**
 CONTRACTOR'S WEBSITE: **www.cobravans.com**
 CONTRACTOR'S LICENSE NO.: **145**
 CONTRACTOR'S INSURANCE NO.: **145**
 CONTRACTOR'S SERVICE ORDER NO.: **145**
 CONTRACTOR'S INVOICE NO.: **145**

ITEM NO.	QUANTITY	DESCRIPTION	CONDITION AT ORIGIN	CONDITION AT DESTINATION	ITEM NO.
1	1	Box Clothes	PB	Box Clothes	1
2	1	Box Clothes	PB	Box Clothes	2
3	1	Box Office	PB	Box Office	3
4	1	Box Office	PB	Box Office	4
5	1	Box Office	PB	Box Office	5
6	1	Box Office	PB	Box Office	6
7	1	Box Office	PB	Box Office	7
8	1	Box Office	PB	Box Office	8
9	1	Box Office	PB	Box Office	9
10	1	Box Office	PB	Box Office	10
11	1	Box Office	PB	Box Office	11
12	1	Box Office	PB	Box Office	12
13	1	Box Office	PB	Box Office	13
14	1	Box Office	PB	Box Office	14
15	1	Box Office	PB	Box Office	15
16	1	Box Office	PB	Box Office	16
17	1	Box Office	PB	Box Office	17
18	1	Box Office	PB	Box Office	18
19	1	Box Office	PB	Box Office	19
20	1	Box Office	PB	Box Office	20
21	1	Box Office	PB	Box Office	21
22	1	Box Office	PB	Box Office	22
23	1	Box Office	PB	Box Office	23
24	1	Box Office	PB	Box Office	24
25	1	Box Office	PB	Box Office	25
26	1	Box Office	PB	Box Office	26
27	1	Box Office	PB	Box Office	27
28	1	Box Office	PB	Box Office	28
29	1	Box Office	PB	Box Office	29
30	1	Box Office	PB	Box Office	30
31	1	Box Office	PB	Box Office	31
32	1	Box Office	PB	Box Office	32
33	1	Box Office	PB	Box Office	33
34	1	Box Office	PB	Box Office	34
35	1	Box Office	PB	Box Office	35
36	1	Box Office	PB	Box Office	36
37	1	Box Office	PB	Box Office	37
38	1	Box Office	PB	Box Office	38
39	1	Box Office	PB	Box Office	39
40	1	Box Office	PB	Box Office	40
41	1	Box Office	PB	Box Office	41
42	1	Box Office	PB	Box Office	42
43	1	Box Office	PB	Box Office	43
44	1	Box Office	PB	Box Office	44
45	1	Box Office	PB	Box Office	45
46	1	Box Office	PB	Box Office	46
47	1	Box Office	PB	Box Office	47
48	1	Box Office	PB	Box Office	48
49	1	Box Office	PB	Box Office	49
50	1	Box Office	PB	Box Office	50

REMARKS/EXCEPTIONS:

THE RULER CHECKED ALL THE GOODS LISTED AND NUMBERED 1 TO _____ INCLUDE AND ACKNOWLEDGE THAT THIS IS A TRUE AND CORRECT LIST OF THE GOODS SHIPPED AND BY THE DATE OF THE GOODS RECEIVED.

WARNING

BEFORE SIGNING CHECK SHIPPING COUNT ITEMS AND DESCRIBE LOSS OR DAMAGE IN SPACE ON THE RIGHT ABOVE.

AT ORIGIN: **Paul Karcos** DATE: **7-10-18** AT DESTINATION: **Terse Karcos** DATE: **7-12-18**

OWNER OR AUTHORIZED AGENT: **Paul Karcos** OWNER OR AUTHORIZED AGENT: **Terse Karcos**

Exhibit 11

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HOUSEHOLD GOODS DESCRIPTIVE INVENTORY

CONTRACTOR OR CARRIER Cobra Van Lines		TAG COLOR Orange NOS. 1 THRU 80	TAG LOT NO. YE4582	PAGE NO. 1 NO. OF PAGES 5
OWNER'S GRADE OR RATING AND NAME Earleor Dukaert		CARRIER'S REFERENCE NO.		
ORIGIN LOADING ADDRESS 3243 S. Bahama St., Aurora, C.O., 80013		CONTRACT OR GBL NO.		
DESTINATION		GOVT. SERVICE ORDER NO.		
		VAN NUMBER		

SCRIPTIVE SYMBOLS DDO - DISASSEMBLED BY OWNER PB - PROFESSIONAL BOOKS PE - PROFESSIONAL EQUIPMENT PP - PROFESSIONAL PAPERS MCL - MECHANICAL CONDITION UNKNOWN	EXCEPTION SYMBOLS BE - BENT BR - BROKEN BU - BURST CH - CHIPPED CU - CRACKED A - CONDITION UNKNOWN D - DENTED F - FAGED G - GOUGED L - LOOSE M - MARRED MB - MILDRED NO - NOTHEATEN P - PEELING R - RUBBED RU - RUSTED SC - SCRATCHED SH - SHORT SO - SOILED ST - STAINED S - STRETCHED T - TORN W - BADLY WORN Z - CRACKED	LOCATION SYMBOLS 1. ARM 2. BOTTOM 3. CORNER 4. FRONT 5. LEFT 6. LEGS 7. REAR 8. RIGHT 9. SIDE 10. TOP 11. YCIEER 12. EDGE 13. CENTER 14. INSIDE 15. SEAT 16. DRAWER 17. DOOR 18. SHELF 19. HARDWARE
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NOTE: THE OMISSION OF THESE SYMBOLS INDICATES GOOD CONDITION EXCEPT FOR NORMAL WEAR.

ITEM NO.	WHSE CROSS REF.	DRIVER CHECK	WHSE CHECK	ARTICLES	CONDITION AT ORIGIN	EXCEPTIONS UP UNTIL AT DESTINATION	ITEM NO.
1				Box office	PBO 31 Shelf	SC ✓	1
2				Box	PBO Metal Pole	SC ✓	2
3				Box	PBO Metal Pole	SC ✓	3
4				Box	PBO Metal Pole	SC ✓	4
5				Box	PBO Metal Pole	SC ✓	5
6				Box	PBO Glass shelves	SC ✓	6
7				Box	PBO Shelf	SC ✓	7
8				Box	PBO Box	PBO ✓	8
9				Box	PBO Shelf	SC ✓	9
10				Box office	PBO 40 Shelf	SC ✓	0
1				Cushions	CP Shelf	SC ✓	1
2				Cushions	CP Table	PBO ✓	2
3				Couch	CP Shelf	SC ✓	3
4				Chairs	CP Box	PBO ✓	4
5				Overhead Drivers	CP Glass Table Top	SC ✓	5
6				Overhead Drivers	CP Box	PBO ✓	6
7				Table	CP Box	PBO ✓	7
8				Ben	PBO Table Part	SC ✓	8
9				Shelf	SC Table Part	SC ✓	9
20				Shelf	SC 50 Mirror	SC ✓	0
1				Mirror Wall	SC Chair	SC ✓	1
2				Mirror Wall	SC Chair	CP ✓	2
3				Stool	SC Chair	CP ✓	3
4				Shelf	SC Bow Chairs	PBO ✓	4
5				Shelf	SC Chairs Box	PBO ✓	5
6				Shelf	SC C.B.S. Box	PBO ✓	6
7				Generator Wheels	PBO Boxes Box	PBO ✓	7
8				Generator Wheels	PBO Shelves Box	PBO ✓	8
9				Shelf	SC Salon Chair	SC ✓	9
30				Shelf	SC 60 Salon Chair	SC ✓	0

REMARKS/EXCEPTIONS

"WE HAVE CHECKED ALL THE ITEMS LISTED AND NUMBERED 1 TO _____ INCLUSIVE AND ACKNOWLEDGE THAT THIS IS A TRUE AND COMPLETE LIST OF THE GOODS TENDERED AND OF THE STATE OF THE GOODS RECEIVED"

WARNING

BEFORE SIGNING CHECK SHIPMENT, COUNT ITEMS AND DESCRIBE LOSS OR DAMAGE IN SPACE ON THE RIGHT ABOVE.

AT ORIGIN	CONTRACTOR, CARRIER OR AUTHORIZED AGENT (DRIVER)	DATE	AT DESTINATION	CONTRACTOR, CARRIER OR AUTHORIZED AGENT (DRIVER)	DATE
	(SIGNATURE) <i>Josee Larrea</i>	5-10-18		(SIGNATURE) <i>Josee Larrea</i>	7-12-18
	OWNER OR AUTHORIZED AGENT	DATE		OWNER OR AUTHORIZED AGENT	DATE
	(SIGNATURE) <i>Joe</i>	TIME		(SIGNATURE)	TIME

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HOUSEHOLD GOODS DESCRIPTIVE INVENTORY

TAG LOT NO. YE4582

CONTRACTOR OR CARRIER <u>Cobra Van Lines</u>		TAG COLOR <u>710190</u>	NOS. <u>61</u> THRU <u>120</u>	PAGE NO. <u>5</u>	NO. OF PAGES
OWNER'S GRADE OR RATING AND NAME <u>Barlean Dukart</u>		AGENT <u>72</u>		CARRIER'S REFERENCE NO.	
ORIGIN LOADING ADDRESS <u>3243 S. Bahama St., Aurora, C.O. 80013</u>		CITY		STATE	
DESTINATION				GOVT. SERVICE ORDER NO.	
				VAN NUMBER	

DESCRIPTIVE SYMBOLS

BW - BLACK & WHITE TV
C - COLOR TV
CP - CARRIER PACKED
PBO - PACKED BY OWNER
CD - CARRIER DISASSEMBLED
SW - STRETCH WRAPPED

DDO - DISASSEMBLED BY OWNER
PD - PROFESSIONAL DOORS
PE - PROFESSIONAL EQUIPMENT
PP - PROFESSIONAL PAPERS
MCU - MECHANICAL CONDITION UNKNOWN

BE - BENT
BR - BROKEN
BU - BURSTED
CH - CHIPPED
CH - CONTENTS
& CONDITION UNKNOWN

EXCEPTION SYMBOLS

D - DENTED
F - FADED
G - GOUNCED
L - LOOSE
M - MARSED
MI - MILDEW

MO - MOTH EATEN
P - PEELING
R - RUSTED
SC - SCRATCHED
SH - SHORT

SO - SOILED
ST - STAINED
S - STRETCHED
T - TORN
W - BADLY WORN
Z - CRACKED

LOCATION SYMBOLS

1. A/V
2. BOTTOM
3. CORNER
4. FRONT
5. LEFT
6. LEGS
7. REAR
8. RIGHT
9. SIDE
10. TOP
11. VENEER
12. EDGE
13. CENTER
14. INSIDE
15. SEAT
16. DRAWER
17. DOOR
18. SHELF
19. HARDWARE

NOTE: THE OMISSION OF THESE SYMBOLS INDICATES GOOD CONDITION EXCEPT FOR NORMAL WEAR.

ITEM NO.	WHSE. CROSS REF.	DRIVER CHECK	WHSE. CHECK	ARTICLES	CONDITION AT ORIGIN	EXCEPTIONS IF ANY AT DESTINATION	ITEM NO.
61				Mat Cutter PBO 91	Hair Product PBO		1
2				Sound Bar CP	Tote Hair Product PBO		2
3				TV CP	Box Hair Product PBO		3
4				Shelf SC	Box Toilet supply CP		4
5				Shelf	Box Sink & Badle CP		5
6				shelf SC	Glass Doors CP		6
7				Hair Product's PBO	Shelf CP		7
8					Bar Part's CP		8
9					Box BAG's CP		9
70					100 P ² Office supply's PBO		0
1					Box Photo's & Paper PBO		1
2					Box Office supply PBO		2
3					Box Shelf's PBO		3
4					Box Living Room PBO		4
5					Box Office supply's		5
6				8 Hair Product's PBO	Tote Cleaning supply's		6
7					Box Dog toys PBO		7
8					Box Kitchen supply's		8
9					Box Hair Product		9
80					100 Box Kitchen supply's		0
1					Box Kitchen supply's		1
2							2
3					Box Kitchen supply's PBO		3
4					Tote Office Paper PBO		4
5					Box		5
6					Box Office supply's PBO		6
7					Box Office		7
8					Box Kitchen		8
9					Box Bathroom supply's PBO		9
90				Hair Product's PBO 120	Box Office supply's PBO		0

REMARKS/EXCEPTIONS

"WE HAVE CHECKED ALL THE ITEMS LISTED AND NUMBERED 1 TO _____ INCLUSIVE AND ACKNOWLEDGE THAT THIS IS A TRUE AND COMPLETE LIST OF THE GOODS TENDERED AND OF THE STATE OF THE GOODS RECEIVED."

WARNING

BEFORE SIGNING CHECK SHIPMENT, COUNT ITEMS AND DESCRIBE LOSS OR DAMAGE IN SPACE ON THE RIGHT ABOVE.

AT ORIGIN	CONTRACTOR, CARRIER OR AUTHORIZED AGENT (DRIVER)	DATE	AT DESTINATION	CONTRACTOR, CARRIER OR AUTHORIZED AGENT (DRIVER)	DATE
	(SIGNATURE) <u>George Larrea</u>	TIME		(SIGNATURE) <u>George Larrea</u>	TIME
	OWNER OR AUTHORIZED AGENT	DATE		OWNER OR AUTHORIZED AGENT	DATE
	(SIGNATURE) <u>ele</u>	TIME		(SIGNATURE)	TIME

HOUSEHOLD GOODS DESCRIPTIVE INVENTORY

CONTRACTOR OR CARRIER		TAG LOT NO. YE4582	PAGE NO. 3	NO. OF PAGES 3
OWNER'S GRADE OR RATING AND NAME Cobra Van Lines		TAG COLOR Orange	NOS. 121	THRU 180
ORIGIN LOADING ADDRESS 3943 S. Bahama St., Aurora, C.O. 80013		AGENT JL	CARRIER'S REFERENCE NO.	
CITY		CONTRACT OR GBL. NO.		GOVT. SERVICE ORDER NO.
STATE		VAN NUMBER		
DESCRIPTIVE SYMBOLS BW - BLACK & WHITE TV C - COLOR TV CP - CARRIER PACKED PWO - PACKED BY OWNER CD - CARRIER DISASSEMBLED SW - STRETCH WRAPPED DNO - DISASSEMBLED BY OWNER PB - PROFESSIONAL BOOKS PE - PROFESSIONAL EQUIPMENT PP - PROFESSIONAL PAPER MCU - MECHANICAL CONDITION UNKNOWN BE - BENT BR - BROKEN BU - BURNED CH - CHIPPED CU - CONTENTS & CONDITION UNKNOWN EXCEPTION SYMBOLS D - DENTED F - FADED G - GOUSED L - LOOSE M - MARRED ML - MILDLY MO - MOTHEATEN P - PEELING R - RUBBED RU - RUSTED SC - SCRATCHED SH - SHORT SO - SOILED ST - STAINED S - STRETCHED T - TORN W - BAKY WORN Z - CRACKED LOCATION SYMBOLS 1. ARM 2. BOTTOM 3. CORNER 4. FRONT 5. LEFT 6. LEGS 7. REAR 8. RIGHT 9. SIDE 10. TOP 11. VENEER 12. EDGE 13. CENTER 14. INSIDE 15. SEAT 16. DRAWER 17. DOOR 18. SHELF 19. HARDWARE				

NOTE: THE OMISSION OF THESE SYMBOLS INDICATES GOOD CONDITION EXCEPT FOR NORMAL WEAR.

ITEM NO.	WHSE. CROSS REF.	DRIVER CHECK	WHSE. CHECK	ARTICLES	CONDITION AT ORIGIN	EXCEPTIONS (IF ANY) AT DESTINATION	ITEM NO.	
121				Shelfs	PBO	151 Chair	CP	1
2				Stool	CP	Table-Tools	PBO	2
3				Shelfs	CP	Table	SC	3
4				Stool	CP	Tool Box	PBO	4
5				Stool	CP	Yard Tools	SC	5
6				Stool	CP	Chop Saw	SC	6
7				Stool	CP	Blower	SC	7
8				Stool	CP	Table Saw	SC	8
9				Stool	CP	Vice-Table	SC	9
130				Shelfs	CP	160 Ramps	SC	0
1				Shelfs	CP	Box	PBO	1
2				Tr. Pools	PBO	Box	PBO	2
3				Light Kit Photos	PBO	Table - Jack	PBO	3
4				Shelf	CP	Big Tool Box	PBO	4
5				Shelf	CP	Yard Tools	SC	5
6				Shelf	CP	Weed Eater	SC	6
7				Shelf	CP	Dolly	SC	7
8				Rug	CP	Cart	SC	8
9				Box-Dishes	PBO	Metal stand-Tools	SC	9
140				Salon Chair	CP	170 Box-Camping Fishing	PBO	0
1				Filing Cabinet	CP	Box-Carpenter/Supplies	PBO	1
2				TV	CP	Table-Camping Gear	PBO	2
3				Drill	PBO	Box-Carpenter Supplies	PBO	3
4				Box-Tools	PBO	Ladder	SC	4
5				Box-Tools	PBO	Ladder	SC	5
6				Table-Tools	PBO	Ladder	SC	6
7				Table-Tools	PBO	Box-Roller Blades-ext	PBO	7
8				Carafe	PBO	Box-Tools-	PBO	8
9				Tackle Box	PBO	Box-Ice Chests	PBO	9
150				Chair	CP	180 Table-Art Supplies	PBO	0

REMARKS/EXCEPTIONS

"WE HAVE CHECKED ALL THE ITEMS LISTED AND NUMBERED 1 TO _____ INCLUSIVE AND ACKNOWLEDGE THAT THIS IS A TRUE AND COMPLETE LIST OF THE GOODS TENDERED AND OF THE STATE OF THE GOODS RECEIVED."

WARNING

BEFORE SIGNING CHECK SHIPMENT, COUNT ITEMS AND DESCRIBE LOSS OR DAMAGE IN SPACE ON THE RIGHT ABOVE.

AT ORIGIN	CONTRACTOR, CARRIER OR AUTHORIZED AGENT (DRIVER)	DATE	AT DESTINATION	CONTRACTOR, CARRIER OR AUTHORIZED AGENT (DRIVER)	DATE
	(SIGNATURE) <i>Jesse Larrea</i>	5-18		(SIGNATURE) <i>Jesse Larrea</i>	7-12-18
	OWNER OR AUTHORIZED AGENT	DATE		OWNER OR AUTHORIZED AGENT	DATE
	(SIGNATURE) <i>Jesse</i>	TIME		(SIGNATURE)	TIME

HOUSEHOLD GOODS DESCRIPTIVE INVENTORY

TAG LOT NO. YE4592

CONTRACTOR OR CARRIER		TAG COLOR	NOS. 181	THRU 240	PAGE NO. 4	NO. OF PAGES
OWNER'S GRADE OR RATING AND NAME		AGENT	CARRIER'S REFERENCE NO.			
ORIGIN LOADING ADDRESS		CITY	STATE		CONTRACT OR GBL NO.	
DESTINATION		GOVT. SERVICE ORDER NO.		VAN NUMBER		

DESCRIPTIVE SYMBOLS		EXCEPTION SYMBOLS		LOCATION SYMBOLS	
BW - BLACK & WHITE TV	DBO - DISASSEMBLED BY OWNER	D - DENTED	MO - MOTHEATEN	1. ARM	8. RIGHT
C - COLOR TV	PE - PROFESSIONAL EQUIPMENT	F - FADED	P - PEBBLING	2. BOTTOM	9. SIDE
CP - CARRIER PACKED	PP - PROFESSIONAL PAPERS	G - GOUNDED	R - RUBBED	3. CORNER	10. TOP
FO - PACKED BY OWNER	MCU - MECHANICAL CONDITION UNKNOWN	L - LOOSE	RU - RUSTED	4. FRONT	11. VENEER
CD - CARRIER DISASSEMBLED		M - MARRED	SC - SCRATCHED	5. LEFT	12. EDGE
SW - STRETCH WRAPPED		MI - MILDREW	SN - SHORT	6. LEGS	13. CENTER
				7. REAR	14. INSIDE

NOTE: THE OMISSION OF THESE SYMBOLS INDICATES GOOD CONDITION EXCEPT FOR NORMAL WEAR.

ITEM NO.	WHSE. CROSS REF.	DRIVER CHECK	WHSE. CHECK	ARTICLES	CONDITION AT ORIGIN	EXCEPTIONS (IF ANY) AT DESTINATION	ITEM NO.
18				Box-Papers	PBO		1
2				Ladder-SM	SC		2
3				Tote-Shot Tools	PBO		3
4				Box-Tools	PBO		4
5				Tote-Tools	PBO		5
6				Box-Tools	PBO		6
7				Box-Kitchen	PBO		7
8					Box-Bathroom Supply's	PBO	8
9					Box-Clothes-Vic-Nac	PBO	9
19					Box-Clothes	PBO	0
1					Box-Shoes	PBO	1
2					Fishing Poles		2
3					Pool Table		3
4					Box OFFICE supply	PBO	4
5					Box 11 11	PBO	5
6					Box OFFICE supply	PBO	6
7				Box-Kitchen	PBO		7
8				Box-office	PBO		8
9				Salt-trace-Dive Gear	PBO		9
20				Tote-Cables	PBO		0
1				Tote-nuts-Bolts	PBO		1
2				Box-office	PBO		2
3				Box-WatVac-Tools	PBO		3
4				Box-Kitchen	PBO		4
5				Rolling Cart	SC		5
6				Box-Ant Supplies	PBO		6
7				Box-Kitchen	PBO		7
8				Box-Kitchen	PBO		8
9				Box-Kitchen	PBO		9
21				Box-Kitchen	PBO		0

REMARKS/EXCEPTIONS

"WE HAVE CHECKED ALL THE ITEMS LISTED AND NUMBERED 1 TO _____ INCLUSIVE AND ACKNOWLEDGE THAT THIS IS A TRUE AND COMPLETE LIST OF THE GOODS TENDERED AND OF THE STATE OF THE GOODS RECEIVED"

WARNING

BEFORE SIGNING CHECK SHIPMENT, COUNT ITEMS AND DESCRIBE LOSS OR DAMAGE IN SPACE ON THE RIGHT ABOVE.

AT ORIGIN	CONTRACTOR, CARRIER OR AUTHORIZED AGENT (DRIVER)	DATE	AT DESTINATION	CONTRACTOR, CARRIER OR AUTHORIZED AGENT (DRIVER)	DATE
	(SIGNATURE) Jesse L. Rourke	5-10-18		(SIGNATURE) Jesse L. Rourke	7-12-18
	OWNER OR AUTHORIZED AGENT	DATE		OWNER OR AUTHORIZED AGENT	DATE
	(SIGNATURE)	TIME		(SIGNATURE)	TIME

HOUSEHOLD GOODS DESCRIPTIVE INVENTORY

TAG LOT NO. YE4582

CONTRACTOR OR CARRIER <i>Cobra Van Lines</i>		TAG COLOR <i>Orange</i>	NOS. <i>291</i>	THRU	PAGE NO. <i>45</i>	NO. OF PAGES <i>45</i>
OWNER'S GRADE OR RATING AND NAME <i>Deanean Dukar</i>		CITY <i>3243 S. Buena Vista St, Aurora, CO 80013</i>			GOVT. SERVICE ORDER NO.	
ORIGIN LOADING ADDRESS		STATE			VAN NUMBER	
DESTINATION		EXCEPTION SYMBOLS				
DESCRIPTIVE SYMBOLS		LOCATION SYMBOLS				

NOTE: THE OMISSION OF THESE SYMBOLS INDICATES GOOD CONDITION EXCEPT FOR NORMAL WEAR.

ITEM NO.	WHSE. CROSS REF.	DRIVER CHECK	WHSE. CHECK	ARTICLES	CONDITION AT ORIGIN	EXCEPTIONS (IF ANY) AT DESTINATION	ITEM NO.
24				Box Clothes PBO	Box House hold goods PBO		1
2				Box Clothes PBO	Box House hold goods PBO		2
3				Box Office PBO	Box		3
4				Box Office PBO	Guitar & Bag Bag		4
5				Head Board SC	Box Art work PBO		5
6				Mattress SC	Box Living Room PBO		6
7				Mattress SC	Box Glass PBO		7
8				Box office PBO	Box Living Room PBO		8
9				Box office PBO	Box		9
25				Box office PBO	Box		0
1				Box Shelf Val PBO	Box Living Room PBO		1
2				Box Tools	Box House hold PBO		2
3				Box Pool Table Parts CP	Box Art work CP		3
4				Full up Bar	ART		4
5				Guitar Stand	Shelf Parts SC		5
6				Pole's	Box House hold Goods PBO		6
7				Weight	Box		7
8				Weight	Box House hold Goods PBO		8
9				Box PBO	Table Legs		9
26				Office Box PBO	Table Top		0
1				Box Office PBO			1
2				Desk Parts			2
3				Box Desk parts			3
4				Pool cue			4
5				Pool cue			5
6				Box Stairs PBO			6
7				Box Pool Gear PBO			7
8				Box PBO			8
9				Box House hold Goods PBO			9
27				Box Legs Top PBO			0

REMARKS/EXCEPTIONS

"WE HAVE CHECKED ALL THE ITEMS LISTED AND NUMBERED 1 TO _____ INCLUSIVE AND ACKNOWLEDGE THAT THIS IS A TRUE AND COMPLETE LIST OF THE GOODS TENDERED AND OF THE STATE OF THE GOODS RECEIVED"

WARNING

BEFORE SIGNING CHECK SHIPMENT, COUNT ITEMS AND DESCRIBE LOSS OR DAMAGE IN SPACE ON THE RIGHT ABOVE.

AT ORIGIN	CONTRACTOR, CARRIER OR AUTHORIZED AGENT (DRIVER)	DATE	AT DESTINATION	CONTRACTOR, CARRIER OR AUTHORIZED AGENT (DRIVER)	DATE
	(SIGNATURE) <i>Deanean Dukar</i>	5-10-18		(SIGNATURE) <i>Deanean Dukar</i>	7-12-18
	OWNER OR AUTHORIZED AGENT	TIME		OWNER OR AUTHORIZED AGENT	TIME
	(SIGNATURE) <i>Deanean Dukar</i>			(SIGNATURE)	